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Army in Europe and Africa
Regulation 550-175*

CNE-CNA-C6F
Instruction 5840.1G*

USAFE-AFAFRICA
Instruction 51-702*

14 April 2022

Foreign Countries and Nationals

U.S. Forces Customs Controls in Germany

***This publication supersedes AE Regulation 550-175/CNE-CNA-C6F Instruction 5840.1F/ USAFE Instruction 51-702, 15 July 2011.**

For the Commander:

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Summary. This publication prescribes policy and procedures for the U.S. Forces, their military personnel, the civilian component, and their dependents (glossary) stationed in Germany in accordance with the Supplementary Agreement to the NATO Status of Forces Agreement, the German Forces Customs Act, and the German Forces Customs Ordinance. United States European Command (USEUCOM) Directive 45-7 delegates this authority to the CG, USAREUR-AF. Per USEUCOM Instruction 4002.01, the USAREUR-AF Provost Marshal (PM) is delegated as USEUCOM Customs Border Clearance Executive Agent (USEUCOM-wide). This regulation and AE Regulation 10-5 designate the USAREUR-AF PM as the CG, USAREUR-AF, Customs Executive Agent in Germany. The United States Army Customs Agency–Europe (USACA-E), which is subordinate to the PM, serves as the Customs Mission Operator. Therefore, this regulation prescribes responsibilities of the USAREUR-AF PM as the CG, USAREUR-AF, Customs Executive Agent and Customs Mission Operator. Additionally, this publication prescribes responsibilities of USACA-E. Provisions of this regulation are punitive, and violation of these provisions may subject offenders to nonjudicial or judicial action under the Uniform Code of Military Justice. Violations of these provisions may subject individuals to adverse administrative or adverse civilian misconduct action. Furthermore, all offenses may also be punished by the German judicial system.

Summary of Change. This revision—

● Renames the U.S. Forces Customs–Europe to U.S. Army Customs Agency–Europe.

● Adds provisions on authorized transfers of duty- and tax-free goods (chap 4).

● Adds provisions on lending goods to unauthorized personnel (chap 5).

● Adds provisions on customs and border control and host-nation immigration requirements (chap 8).

● Adds provisions on customs policy and procedures for retired U.S. military personnel, unaccompanied dependents (glossary), widows or widowers, and Veteran Health Identification Card (VHIC) holders in Germany (chap 9).

● Adds provisions on authorization for short-term fuel ration cards (chap 10).

● Adds provisions on individual logistic support (ILS) (glossary) for foreign military liaison personnel (chap 11).

● Adds provisions on temporary authorization cards for participants in training, special missions, or conferences; and for special guests and bona-fide visitors (chap 12).

● Adds provisions on temporary authorization for limited ILS for appointed childcare providers (chap 13).

Applicability. This publication—

● Applies to—

○ U.S. Forces and their military and civilian personnel, their dependents, and other personnel who have customs and tax exemptions in Germany under international agreements. These individuals are referred to as “authorized personnel” in this publication.

○ U.S. military personnel on temporary duty in Germany. These personnel are considered members of the Forces, and this publication applies to them in specific situations.

○ Active-duty U.S. military personnel on leave in Germany from a duty station in Europe or North Africa. These personnel are authorized certain privileges.

● Does not apply to—

○ Personnel who are employed by, assigned to, or attached to U.S. diplomatic or consular offices, military missions, offices of defense cooperation, or military assistance advisory groups, and the dependents of persons employed in these offices, except as implemented in AE Regulation 600-700.

○ Retired U.S. military personnel and their dependents residing in or visiting Germany (except as authorized in chapter 9).

○ Unaccompanied dependents and widows or widowers of U.S. military personnel residing in Germany (except as authorized in chapter 9).

○ Gray-area retirees (glossary) and their accompanying dependents, and the widows or widowers of gray-area retirees in Germany (except as authorized in chapter 9).

○ U.S. tourists and other travelers (such as business travelers) in Germany.

○ Active-duty U.S. military personnel on leave in Germany from a duty station located outside Europe or North Africa.

○ U.S. Forces personnel assigned to USAREUR-AF but stationed outside of Germany. Appendix D, table D-1, provides a list of responsible component commanders, regulations, and POCs for respective country agreements.

Records Management. Records created as a result of processes prescribed by this publication must be—

● Identified, maintained, and disposed of by Army in Europe and Africa units according to AR 25-400-2. Record titles and descriptions are on the Army Records Information Management System website at *https://www.arims.army.mil*.

● Identified, maintained, and disposed of by CNE-CNA-C6F organizations according to Navy records-management policy.

● Maintained by USAFE/AFAFRICA units in accordance with Air Force Instruction 33-322, including Change 1, Records Management and Information Governance Program, and disposed of in accordance with the Air Force Records Disposition Schedule located in Air Force Records Information Management System at *https://www.my.af.mil/gcss-af61a/afrims/afrims/rims.cfm*.

Supplementation. Organizations will not supplement this publication without USAREUR-AF G3 (AEOP-PM) approval.

Forms. This publication prescribes AEA Form 550-175A, AEA Form 550-175B, AEA Form 550-175C, AEA Form 550-175D, AEA Form 550-175E, AEA Form 550-175F, AEA Form 550-175G, AEA Form 550-175H, AEA Form 550-175J, AEA Form 550-175K, AEA Form 550-175L, and AEA Form 550-175M. AEA and higher level forms are available through the Army in Europe Library & Publishing System (AEPUBS) at *https://aepubs.eur.army.mil/* or *https://intranet.eur.army.mil/aepubs/SitePages/HomeNew.aspx*.

Suggested Improvements. The proponent of this publication is the Customs Executive Agency (CEA), Office of the Provost Marshal, G3/4 Protect, Office of the Deputy Chief of Staff, G3, HQ USAREUR-AF (mil 537-3960). Users may suggest improvements to this publication by sending DA Form 2028 to the CEA at USAREUR-AF G3 (AEOP-PM-CE), Unit 29351, APO AE 09014-9351.

Distribution. This publication is available only electronically and is posted in AEPUBS at *https://aepubs.eur.army.mil/* or *https://intranet.eur.army.mil/aepubs/SitePages/HomeNew.aspx*.

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CHAPTER 1
INTRODUCTION

1-1. PURPOSE
This publication prescribes policy and procedures for customs controls for—

a. The U.S. Forces in Germany, the members of the Force, members of the civilian component, and their dependents in Germany according to international agreements.

b. Others as granted by German authorities.

NOTE: DOD does not sanction or endorse any commercial product, service, or enterprise mentioned in this publication.

1-2. REFERENCES
Appendix A lists references.

1-3. EXPLANATION OF ABBREVIATIONS AND TERMS

The glossary defines abbreviations and terms.

1-4. AUTHORITY

The United States and Germany have agreed to provide mutual assistance and cooperation to safeguard the security and protect the property of their countries and their personnel. Per international agreements, United States Army Customs Agency–Europe (USACA-E) officials are authorized to help German authorities, at border-crossing points as well as at German military and civilian airfields, to—

a. Ensure the speedy and unobstructed passage of U.S. Forces military and civilian personnel and their dependents.

b. Restrict the flow of contraband into Germany and U.S. installations in Germany.

1-5. RESPONSIBILITIES

a. The USAREUR-AF Provost Marshal (PM), as the CG, USAREUR-AF, Customs Executive Agent in Germany, will—

(1) Develop customs policy and procedures affecting the U.S. Forces in Germany, the members of the Force, members of the civilian component, and their dependents in Germany; and coordinate the policy and procedures with German fiscal and customs authorities.

(2) Establish and update procedures to maintain customs controls over U.S. Forces personnel.

(3) Resolve issues arising from customs policy matters and inspections of U.S. Forces personnel with German authorities.

(4) Supervise the following customs-control functions:

(a) Inspection of U.S. Forces personnel, their property, and U.S. Forces Government cargo entering or leaving Germany to the extent allowed by this publication and international agreements.

(b) Administration of customs-control documents for U.S. Forces personnel in Germany.

(c) Distribution of information on the NATO Status of Forces Agreement (SOFA) and German customs requirements through a public-affairs program.

(d) Inspection of movement documents and copies of NATO Form 302 (*NATO Versandschein*) or other equivalent customs declaration forms used to transport and clear official U.S. Forces consignments when crossing borders within the EU (USEUCOM Manual 4504.01). This action will include determining the frequency of such inspections.

NOTE: The Customs Executive Agent will not coordinate matters pertaining to official U.S. Forces consignments to, out of, or through Germany. These matters fall under the authority of the Chief, Joint Management Division, J-4, HQ USEUCOM, Unit 30400, APO AE 09131-0400.

(5) Investigate and report customs and tax violations committed by personnel who are subject to this publication as well as violations involving U.S. Forces property. The Customs Executive Agent will provide reports to appropriate commanders.

(6) Coordinate requests for exceptions to the customs and tax provisions of the NATO SOFA Supplementary Agreement, implementing agreements, the *Truppenzollgesetz* (Forces Customs Law), the *Truppenzollverordnung* (Forces Customs Ordinance) (glossary), and this publication with the German Federal Ministry of Finance (FMOF). The Customs Executive Agent is the NATO SOFA extension authority in coordination with the FMOF.

b. The USAREUR-AF PM, through USACA-E as the Customs Mission Operator in Germany, will—

(1) Investigate and report customs and tax violations. When a violation indicates the involvement of members of a U.S. military Service other than the U.S. Army, the applicable Service component (NAVEUR-NAVAF or USAFE/AFAFRICA) will be notified immediately and investigative jurisdiction will be determined.

(2) Conduct liaison and joint investigations with the Service component and with German customs and tax investigative authorities.

(3) Coordinate investigations involving U.S. Forces consignments with U.S. Forces transportation authorities with the Chief, Joint Management Division, J-4, HQ USEUCOM, Unit 30400, APO AE 09131-0400.

c. Commanders and supervisors must ensure that personnel under their supervision are aware of prohibited activities according to this publication and AEA Regulation 600-1 or other applicable Service-specific publications.

1-6. PROHIBITED AND RESTRICTED ITEMS AND THE GOVERNING HOST-NATION PROVISIONS, RULES, AND POLICIES

The importation of the following items into Germany is prohibited, unless the conditions allowing restricted importation are met (for example, required permits are presented, limited quantities are not exceeded). The list is nonexhaustive. Personnel with questions about prohibited and restricted items should contact their local USACA-E field office (app B, table B-1).

a. Items Subject to German Health Regulations. U.S. Forces personnel will comply with German health regulations on importing and exporting merchandise such as animals, meat products, plants, poultry, food items, and medications. Medications may include vitamins, supplements, and similar products. U.S. Forces personnel may address questions concerning these regulations to the local USACA-E field office before shipment. U.S. Forces personnel may obtain information on the shipment of animals from local U.S. Forces veterinary authorities.

b. Currency and Other Means of Payment. U.S. Forces personnel may—

(1) Import and export any amount of any currency or other negotiable instruments (for example, bonds, stocks, cryptocurrency (for example, bitcoins)) into and out of Germany. They must, however, inform German customs authorities when entering or leaving Germany if they are carrying currency, negotiable instruments, or jewelry with a value of more than 10,000 euros or the equivalent amount in a foreign currency.

(2) Be subject to import and export limitations imposed by countries other than Germany.

c. Controlled Substances. Substances included in schedules I through V of the U.S. Controlled Substances Act and the German Narcotics Act (*Betäubungsmittelgesetz*) are prohibited from importation. Banned substances include the following (the list is nonexhaustive):

(1) Amphetamines.

(2) Cocaine.

(3) Heroin.

(4) Lysergic acid diethylamide (LSD).

(5) Marijuana and hashish.

(6) Methamphetamine.

(7) Opium.

(8) Secobarbital.

d. Privately Owned Firearms, Ammunition, and Explosives.

(1) Prohibited Items. Personnel may not import, possess, or export items listed as prohibited items in AE Regulation 190-6.

(2) Restricted Items. Personnel must obtain an import permit (*Verbringungserlaubnis*) from the *Bundesverwaltungsamt* (Federal Administration Office) and a weapons possession card (*Waffenbesitzkarte*) with the weapon registered on it before importing privately owned firearms (POFs) into Germany. AE Regulation 190-6 provides details on importation requirements. Commanders and supervisors will advise personnel on policy and procedures for importing authorized POFs.

e. Other Import Restrictions and Prohibited Items (Germany).

(1) The import of unauthorized fireworks into Germany is prohibited under the provisions of the Explosives Act and is therefore punishable.

(2) The import of certain goods for inflicting capital punishment or torture on human beings is regulated by prohibitions on the trade in such items or authorization requirements.

(3) The import into Germany of media (such as publications, sound and image carriers, data storage devices, images) with content that is unconstitutional or harmful to adolescents is restricted.

(4) In addition, the following restrictions and prohibitions exist:

(a) Prohibitions on the import of a number of dog breeds, which are classified as dangerous, into Germany.

NOTE: Dog breeds prohibited by German federal law are American Staffordshire terrier, bullterrier, pit bull terrier, Staffordshire bull terrier, and their crossbreeds or breeds with other dogs. Each German state has individual lists of dangerous dogs also prohibited from import if the dog is going to be kept permanently in the respective state.

(b) Import bans intended to prevent the unauthorized movement of stolen or illegally acquired works of art across borders.

(c) Restrictions on the import of counterfeit or pirated products.

(d) Restrictions on the import of rough diamonds to prevent the flow of conflict diamonds (implemented through the Kimberley Process).

f. General Import and Export Allowances, Restrictions, and Prohibitions.

(1) Unaccompanied Importation. Personnel subject to this publication may not import the following items in unaccompanied baggage, household goods, or through the Military Postal Service (MPS):

(a) Alcoholic beverages.

(b) Animals, plants, soil, dirt, or (untreated) wood and wood packing material not in accordance with the regulation on wood packaging material in international trades (ISPM15).

(c) Cigarettes (including e-cigarettes, vaping products, and smoking paraphernalia), other tobacco products, tobacco alternatives, and other nicotine products or byproducts.

(d) Coffee and coffee products.

(e) Medication, including vitamins and nutritional supplements.

(f) Meat and meat products.

(g) Milk and dairy products.

NOTE: If personnel import items of the types listed in (a) through (g) through the German Postal Service or by commercial couriers subject to German customs import restrictions and German import duties and taxes, USACA-E field offices will not issue AEA Form 550-175A for such imports unless coordinated with the Customs Executive Agency (CEA).

(2) Unaccompanied Exportation. Personnel subject to this publication may not export the following items in unaccompanied baggage, household goods, or through the MPS:

(a) Alcoholic beverages. The export of alcoholic beverages may be contingent upon transportation regulations and only permitted with appropriate transportation documentation.

(b) Ration items (coffee and coffee products, cigarettes and other tobacco products) if purchased in U.S. Forces sales facilities.

NOTE 1: Cigarettes, other tobacco products, coffee, and coffee products may be exported in unaccompanied baggage and household goods or through the MPS if purchased tax-paid in the EU and exported in noncommercial quantities (glossary). Alcoholic beverages may be exported through commercial carriers in noncommercial quantities if purchased tax-paid in the EU. These items, however, will be subject to the customs requirements of the country of destination and to applicable transportation and postal restrictions.

NOTE 2: The unaccompanied exportation of medication and medicinal by-products via MPS may be restricted based on laws and restrictions that apply at the place of destination. For example, per U.S. laws and United States Postal Service (USPS) regulation, prescription medicines are not allowed to be mailed.

(3) Accompanied Importation and Exportation.

(a) Accompanied importation and exportation may be subject to import and export limitations imposed by Germany and countries other than Germany. German customs personnel and Federal Police will ensure compliance with import and export limitations at border-crossing points. Personnel may—

1. Not import and export items that are banned or restricted and will provide appropriate declarations as necessary.

2. Import medicinal products in the quantity required for the traveler's personal needs according to the individual's prescription or, as a maximum, in quantities for a use of up to 3 months.

(b) Personnel may import and export the items shown in table 1-1 in the amounts indicated without paying customs duties. These items may be hand-carried or placed in accompanied baggage.

1-7. CUSTOMS AND IDENTITY CONTROLS AT BORDER-CROSSING POINTS

a. German customs authorities have jurisdiction at German border-crossing points. Personnel crossing the border may be required to—

(1) Establish their identity and produce travel documents.

(2) Make customs declarations.

(3) Submit to body searches.

(4) Allow customs personnel to—

(a) Examine and search any property being imported or exported.

(b) Detain or seize any property that is deemed to be a customs violation.

b. German customs authorities may request USACA-E personnel to assist them at border-crossing points.

Table 1-1
Items and Amounts for Duty-Free Import and Export

Item	For Import into Germany	For Export from Germany
Cigarettes and other tobacco products	• 200 cigarettes or • 100 cigarillos or • 50 cigars or • 250 g (about 8.8 oz) of smoking tobacco or • a proportional combination of the items above	noncommercial quantities*
Alcohol and alcoholic beverages	• 1 L (about 1.1 qt) of spirits with more than 22% or • 2 L (about 2.1 qt) of wines and spirits with highest 22% or • 2 L (about 2.1 qt) of a proportional combination of the items above and • 4 L (about 4.2 qt) of nonsparkling wine and • 16 L (about 16.9 qt) of beer	noncommercial quantities*
	For Import to or Export from Germany	
Coffee and coffee products	• 500 g (about 17.6 oz) of ground coffee or coffee beans • 125 g (about 4.4 oz) of pure soluble coffee • 250 g (about 8.8 oz) of mixed coffee extracts	
*Quantities not exceeding the amount needed for personal use and consumption, and not for resale.		

CHAPTER 2
PERSONAL IMPORTS AND EXPORTS, AND PURCHASE OF VEHICLES FROM TOURISTS OR CUSTOMS BONDED WAREHOUSES (USE OF AEA FORM 550-175A)

2-1. GENERAL
Subject to German law and international agreements, authorized persons may import and export goods for their personal or domestic use or consumption without paying German customs duties or taxes.

a. Imported or exported goods are subject to German customs control. For duty- and tax-free clearance, German customs officials require authorized personnel to submit AEA Form 550-175A. The form must state that the goods imported or exported are for the personal or domestic use or consumption by the U.S. Forces importer or purchaser. When purchasing a privately owned vehicle (POV) in Germany from a tourist of a non-EU country or a car dealer with a customs bonded warehouse, the form must state that the purchase is for the personal use of the U.S. Forces purchaser.

b. AEA Form 550-175A is not required when buying cars from other Sending State Forces exchange systems.

c. AEA Form 550-175A will not be granted for purchasing new or used vehicles if the authorized individual intends to register the vehicle under the German vehicle registration system (*Kraftfahrzeug-Zulassung*).

d. AEA Form 550-175A will be issued – in general – with a validity period of 90 days, granted authorized personnel or their dependents maintain their entitlements (SOFA status) during this time period. For personnel losing their entitlements (SOFA status) earlier due to a permanent change of station (PCS), expiration of the 90-day grace period (glossary), or termination, the validity period of the form will cut off on the date eligible for return from overseas (DEROS), the PCS date, the termination date, or the last day of the 90-day grace period. The same limitations apply in cases where the holder of a power of attorney (POA) is to obtain and process a form for the authorized person.

2-2. APPLICABILITY
This chapter applies to—

a. U.S. military and civilian component personnel on temporary duty (TDY) in or assigned to Germany.

b. U.S. military and civilian personnel assigned to a duty station in Europe or North Africa on official leave or pass in Germany.

c. Non-German NATO military and civilian personnel assigned to an international military headquarters (IMH) in Germany (AE Reg 600-700).

d. Dependents of personnel in subparagraphs a and b above. Dependents of personnel in subparagraph b must be accompanied by their sponsor.

2-3. USE OF AEA FORM 550-175A
AEA Form 550-175A may be used for the following purposes:

a. Import Certificate. An import certificate allows the duty- and tax-free importation of goods purchased outside the EU by authorized personnel. The import certificate also applies to personal goods imported by authorized personnel and to gifts sent through commercial mail carriers to authorized personnel from outside the EU, unless shipped by the U.S. Government or through the MPS.

(1) Personnel must make the purchase through direct negotiations with and payment to a non-German dealer outside the EU or through a bona-fide agent of the non-German dealer in Germany.

(2) Personnel do not need an import certificate for a POV imported to Germany in connection with a PCS when shipped through military channels and registered with the U.S. Forces. German customs authorities may require the POV owner to submit a copy of the PCS orders in lieu of an import certificate. Import certificates are required for POVs that are not imported through military channels.

(3) According to AEA Regulation 190-6, the importation of a POF is not authorized unless the POF owner has a valid German weapons possession card (*Waffenbesitzkarte*).

(4) If a U.S. Forces member wants to purchase a tourist's vehicle with non-EU license plates or German export plates, he or she may use AEA Form 550-175A as an import certificate, even if the purchase takes place in Germany.

b. Purchase Permit. A purchase permit authorizes the duty- and tax-free purchase of a motor vehicle from a German car dealer with a customs bonded warehouse.

c. Export Certificate. An export certificate permits authorized personnel to export personal and household goods duty- and tax-free. AEA Form 550-175A will be submitted only when requested by local German customs authorities as an export certificate.

2-4. PROCEDURES FOR OBTAINING AND SUBMITTING AEA FORM 550-175A

a. Authorized personnel will—

(1) Request AEA Form 550-175A at the local USACA-E field office.

(2) Present documents to prove their eligibility.

(3) Present the following, as applicable:

(a) Import certificate.

1. Bill of sale or proof of ownership.

NOTE: In accordance with AE Regulation 190-6, proof of ownership for POFs can be established either through a properly completed sales slip, a firearms bill of sale (AE Form 190-6G), a contract, a lease bailment, a gift certificate, a POA, or through other documents clearly showing the holder's legal claim as the owner.

2. Shipping documents (for example, bill of lading).

3. Inventory list (bill of lading).

4. German weapons possession card (*Waffenbesitzkarte*).

5 German import certificate for weapons (*Verbringungserlaubnis*).

(b) Export certificate, based on the request by German customs authorities and coordination with the CEA.

(c) Purchase permit (bill of sale, purchase order, or buyer's offer).

(4) Sign all copies of AEA Form 550-175A and acknowledge the responsibilities and procedures.

(5) Present the item and all original copies of AEA Form 550-175A to German customs in person. The customer must report in person to the local German customs office with the goods to be properly imported and customs-cleared, except as described in paragraph 2-5.

(6) After approval by German customs authorities, receive from German customs authorities either one copy or two copies of AEA Form 550-175A, maintain one copy for their records, and use the second copy for registration purposes, if applicable.

(7) Return AEA Form 550-175A for cancellation by the field office in cases where the transaction was not completed.

b. USACA-E personnel will—

(1) Verify the eligibility of the personnel.

(2) Review the supporting documents.

(3) Process and issue AEA Form 550-175A in accordance with the internal USACA-E standing operating procedure (SOP).

2-5. RESPONSIBILITIES

a. The customer or applicant may appoint an authorized agent (a person who is subject to this publication and acts for the applicant by POA and without payment) to submit AEA Form 550-175A for the duty- and tax-free import, export, or purchase of goods. Applicants may not appoint a person without SOFA status to be an authorized agent (for example, a solicitor, sales agency, commercial importer or carrier). A copy of the power of attorney must accompany AEA Form 550-175A.

b. In cases where a person without SOFA status (for example, a solicitor, sales agency, commercial importer or carrier) has already paid customs duties or taxes for the authorized person, AEA Form 550-175A will not be issued after the fact, nor will paid duties be reimbursed.

c. The local USACA-E field office will provide information on the location of the responsible German customs office.

d. AEA Form 550-175A may be issued after the fact only upon request and in coordination with the respective German customs office and the CEA.

e. AE Regulation 190-6 provides the procedures for importing firearms from the United States.

CHAPTER 3
PERSONAL TRANSFERS OF NONCUSTOMARY GIFTS AND GOODS (USE AEA FORM 550-175B)

3-1. GENERAL
U.S. Forces personnel may only transfer goods that they have imported or acquired duty- and tax-free (including the use of the individual tax-relief program in accordance with AE Regulation 215-6) to unauthorized personnel, as prescribed in this chapter. U.S. Forces personnel—

a. May sell a POV only if no lien is indicated on the POV registration and only according to the stipulations of AE Regulation 190-1/CNE-CNA-C6F Instruction 11240.6AB/USAFE-AFAFRICA Instruction 31-202.

b. Will not transfer items before those items have been cleared by customs authorities using AEA Form 550-175B. This includes—

(1) POVs beyond repair and POVs totaled due to accidents.

(2) POFs and other registered weapons parts (for example, barrels).

(3) Transactions initiated through online sales platforms.

3-2. APPLICABILITY
This chapter applies to U.S. military and civilian personnel assigned in Germany, their dependents, and non-German NATO military and civilian personnel assigned to an IMH in Germany (AE Reg 600-700, chap 19).

3-3. PROCEDURES FOR OBTAINING AND SUBMITTING AEA FORM 550-175B

a. Authorized personnel will—

(1) Request AEA Form 550-175B at the local USACA-E field office before the transaction or transfer.

(2) Present documents to prove their eligibility.

(3) Present the following information, as applicable:

(a) For POFs and registered weapons parts (for example, barrels).

1. Bill of sale.

2. Valid weapons registration (AE Form 190-6D).

3. German weapons possession card (*Waffenbesitzkarte*) for buyer and seller.

(b) For POVs:

1. Bill of sale.

2. Valid U.S. Forces POV Registration (AE Form 190-1A).

3. Cleared title (that is, documentation of ownership free from encumbrance, burden, or limitation) or "letter of lien release" (letter of authorization to sell a vehicle while encumbered by a lien).

4. Copy of the power of attorney appointing the agent, if applicable.

(c) For other items, the bill of sale.

(4) Not transfer the item before processing AEA Form 550-175B with German customs authorities.

(5) Sign all copies of AEA Form 550-175B and acknowledge the responsibilities and procedures.

(6) In person, present four original copies of AEA Form 550-175B and the item to the local German customs office. Both the seller or donor and the purchaser or recipient must report in person to the local German customs office with the goods to be transferred for transfer approval.

(7) After approval by German customs authorities, receive from German customs authorities two copies of AEA Form 550-175B and—

(a) Maintain one copy for their records.

(b) Give one copy to the purchaser or recipient.

(8) In case the transaction was not further pursued, return AEA Form 550-175B for cancellation by the USACA-E field office.

b. USACA-E personnel will—

(1) Verify the eligibility.

(2) Review the supporting documents.

(3) Process and issue AEA Form 550-175B according to the USACA-E SOP.

c. Goods may be transferred according to the procedures in subparagraphs a and b above through an authorized agent if—

(1) The agent is subject to this publication and is acting without payment and pursuant to a POA. A copy of the POA appointing the agent must accompany AEA Form 550-175B.

(2) The agent's name and address are entered on AEA Form 550-175B.

(3) The requirements of AE Regulation 190-1/CNE-CNA-C6F Instruction 11240.6AB/USAFE-AFAFRICA Instruction 31-202 are met when a motor vehicle is transferred.

3-4. SPECIAL CONDITIONS

a. Repossession of Goods. Authorized personnel who have goods taken by a legally executed writ of execution or who have goods repossessed by a finance company or other authorized lienholder must comply with paragraph 3-1a and with AE Regulation 190-1/CNE-CNA-C6F Instruction 11240.6AB/USAFE-AFAFRICA Instruction 31-202. These personnel may be liable for duties and taxes on the seized items unless they apply for AEA Form 550-175B requesting exemption from taxes that may otherwise be due.

b. Temporary Storage, Transportation, or Repair.

(1) Goods may be transferred for temporary storage or for transportation to Government or commercial enterprises specializing in such actions.

(2) Goods may be transferred for short periods for repair or other work. Furthermore, U.S. Forces-registered POVs may be released for up to 3 months for sale by consignment.

(a) Under this arrangement, car dealers and potential buyers may use the vehicle for test drives.

(b) Under no circumstances will the Army and Air Force Exchange Service, Europe and Southwest Asia (AAFES-Eur) fuel ration card be transferred to unauthorized personnel (AE Reg 600-17).

c. Self-Reporting. Personnel that did not proceed in accordance with this chapter (for example, if a POV damaged beyond repair was transferred to a junkyard without customs clearance) will immediately report to the local USACA-E field office for further proceedings on a case-by-case basis.

CHAPTER 4
OTHER AUTHORIZED TRANSFERS OF DUTY- AND TAX-FREE GOODS

SECTION I
TRANSFER OF GOODS FOR PERSONAL USE OR CONSUMPTION

4-1. TRANSFER OF FOODSTUFFS ON U.S. FORCES INSTALLATIONS

a. Certain categories of persons not normally authorized tax privileges may buy food and beverages on U.S. Forces installation from AAFES-Eur and Family, morale, welfare, and recreation (FMWR) facilities, such as snackbars, shoppettes, PX/BX stores, Exchange Express stores, installation clubs, food courts, bakeries, and other catering facilities, without paying duties or taxes to German customs authorities. These persons include local national (LN) employees working on U.S. Forces installations, and other persons who are staying at on-post accommodation or who depend on on-post facilities for official duty reasons. They may purchase only prepared food for immediate consumption in single-meal portions. Packaged food items may not exceed a single-meal portion. Bottled or canned beverages for such meals are limited to 64-ounce containers. The use of Defense Commissary Agency (DeCA) facilities to buy food or beverages is not authorized.

b. LN employees may consume food and beverages during internal unit functions and official social functions (for example, potlucks, holiday parties, barbecues) hosted by authorized personnel.

c. LN employees may also bring their Families or guests to U.S. Forces catering facilities for the purpose of dining there if authorized personnel have invited them to a social function.

d. Other unauthorized personnel who are guests (also see AE Regulation 215-1 regarding bona-fide guests) of authorized personnel may consume food and beverages on the premises when purchased by authorized personnel in U.S. Forces sales facilities without reimbursement.

4-2. TRANSFERRING GOODS DURING SPECIAL EVENTS OR PRIVATE FUNCTIONS

a. Unauthorized personnel who are officially invited guests of the U.S. Forces may purchase food and beverages in U.S. Forces catering, dining, or sales facilities at social functions hosted by authorized personnel for immediate consumption on the premises.

b. Tobacco products may be transferred free of tax and duty during private social events and functions if offered for immediate consumption and free of charge.

c. Imported goods may be offered to persons as guests invited to events hosted by the foreign forces or headquarters if the value of the goods offered does not exceed 25 euros.

4-3. TRANSFERRING GOODS AS PERSONAL CUSTOMARY GIFTS

a. Authorized personnel may give gifts to unauthorized personnel without customs clearance provided the gifts are—

(1) For personal or domestic use or consumption and in noncommercial quantities.

(2) Not official-issue military clothing items.

(3) For an occasion where gifts are customarily exchanged such as birthdays, religious holidays, engagements, farewells. The standard of living of both the person giving the gift and the person receiving the gift serves as the basis for determining the propriety of such gifts. Purchases given regularly or given instead of payment for services are not gifts. Gifts that are not considered customary may be given to unauthorized personnel only in accordance with chapter 3 of this publication.

b. Authorized gifts may not exceed the indicated quantities for the following items:

(1) Coffee: 500 g (about 17.6 oz) or 125 g (about 4.4 oz) of coffee extract.

(2) Spirits: 1 bottle not to exceed 1.2 L (about 1.3 qt).

(3) Tobacco products: 25 cigarettes, or 10 cigars, or 60 g (about 2.1 oz) of smoking tobacco.

4-4. DONATING GOODS FOR CHARITY

The transfer of goods for donation or charity requires approval by the CEA and German customs authorities. Requests must be submitted in accordance with chapter 14 of this regulation.

SECTION II
TRANSFER OF GOODS DURING PUBLIC EVENTS

4-5. TRANSFERRING GOODS AT FLEA MARKETS

Organizations of the U.S. Forces or headquarters may organize flea markets provided the following conditions are met:

a. The flea market is a public event organized by the U.S. Forces or headquarters where members of the U.S. Forces will sell only used goods for domestic use.

b. The servicing USACA-E field office reports the event to the responsible German customs office at least 1 week in advance. This notification must include the location and time of the event.

c. The price of any single item offered for sale will not exceed 25 euros or the U.S. dollar equivalent.

NOTE: Privately organized yard sales and garage sales by individuals are restricted to ID-card holders with status under the SOFA in Germany. The transfer of tax- and duty-free goods to unauthorized individuals is not authorized unless permitted in accordance with chapter 3 of this publication.

4-6. TRANSFERRING GOODS AT PUBLIC EVENTS HOSTED BY THE U.S. FORCES

The U.S. Forces may sponsor events open to the general public where imported goods are offered for sale but require clearance from German customs authorities before the event takes place. These events take place on the premises made available to the U.S. Forces for their use and are organized by the U.S. Forces. The German public is invited to attend without admission charges. Failure to comply with the below requirements or conducting an event that was not approved constitutes commercial trading in the German market.

a. Submitting Requests. Public events hosted by the U.S. Forces at which imported goods are offered for sale to unauthorized persons require approval by the responsible German customs office. The request for approval of a *Volksfest* must be submitted to the servicing USACA-E field office at least 10 weeks before the event for coordination with the responsible German customs office. Requests must include a list of all goods intended for sale, including their customs status, their respective sales price, and the name and address of the seller. If German vendors (*Schausteller*) participate, the request for approval must also include the following:

(1) A list of participating vendors with their tax identification number.

(2) A photocopy of the vendor's trade registration (*Gewerbeanmeldung*) or itinerant trade license (*Reisegewerbekarte*).

NOTE: Requests for approval of other public events (for example, rodeos, Halloween balls) must be submitted in writing to the CEA, Office of the Provost Marshal (OPM), HQ USAREUR-AF (AEOP-PM), Unit 29351, APO AE 09014-9351; *usarmy.wiesbaden.usareur.mbx.nato-sofa@army.mil*, 10 weeks before the event for further coordination with German customs authorities.

b. Approval. The responsible German customs office may approve the transfer of the following:

(1) Food and beverages intended exclusively for immediate consumption.

(2) Other imported goods not available on the German market with an individual sales price or value of 25 euros or less.

c. Disapproval. German customs may disapprove a request if it is not submitted on time, or if the organizer does not provide the information and supporting documents listed in subparagraph a above.

4-7. TRANSFERRING GOODS AT PUBLIC EVENTS HOSTED BY OTHER PARTIES
The U.S. Forces may offer imported goods for sale to unauthorized persons during public events to which a German organization has invited them. The sale of tax-free goods, however, requires clearance from German customs authorities before the U.S. Forces can participate. Failure to comply with the below requirements or selling food without approval constitutes commercial trading in the German market.

a. Submitting Requests. Public events conducted by German organizers to which the U.S. Forces are invited to participate and offer imported goods for sale require clearance by the responsible German customs office. The servicing USACA-E field office must submit requests for transfer of imported goods to the responsible German customs office at least 10 weeks before the event. The request must include the following information:

(1) The invitation from the organizer.

(2) A list of all imported goods the U.S. Forces intend to transfer and their sales prices.

b. Approval. German customs may approve the sale of food and beverages intended exclusively for immediate consumption.

c. Disapproval. German customs may disapprove a request if it is not submitted in time or if the organizer does not provide the information and supporting documents listed in subparagraph a above.

SECTION III
TRANSFER OF SURPLUS GOODS

Only select agencies may transfer surplus goods (glossary) of the U.S. Forces (for example, POVs, nontactical vehicles (NTVs) and other surplus tax-free items) to nonauthorized personnel or entities. For detailed information, contact the NATO SOFA Customs Policy Branch, CEA, OPM, HQ USAREUR-AF. Each transfer requires clearance from German customs agencies before the transfer takes place. The USAREUR-AF CEA, as the customs mission operator in Germany, must ensure proper customs clearance procedures are applied. Therefore, the CEA and USACA-E will monitor transfers of tax-free items by U.S. Forces agencies to persons or enterprises subject to German taxation.

4-8. GENERAL CUSTOMS CLEARANCE PROCEDURES FOR SURPLUS GOODS

Procedures in this paragraph outline the general course of action. Further options for disposing of surplus vehicles are outlined in paragraphs 4-9 through 4-11:

a. For proper customs clearance, the local German customs office requires information pertaining to the surplus goods at least 8 business days before the transfer. A list or invoice reflecting the information will show all items, names and addresses of buyers, sales prices, and the current location of the items. Unless otherwise agreed between host nation (HN) customs authorities, and in coordination with the NATO SOFA Customs Policy Branch, CEA, OPM, HQ USAREUR-AF, in exceptional cases, the list or invoice will be submitted in advance to the respective USACA-E field office (table B-1) for distribution to and coordination with the respective local German customs office.

b. The respective local German customs office will—

(1) Request to see the goods and schedule an on-site inspection (fees may occur), or may ask USACA-E personnel to conduct an inspection and verify the data on their behalf.

(2) Issue applicable customs declaration forms.

c. Agencies will not release any items without customs clearance.

d. With the approval of the German customs administration, the German Federal Disposal Sales and Marketing Agency (*VEBEG)* may be used for disposing of surplus goods (see para 4-11 for the disposal of NTVs). For details, contact the CEA, OPM, HQ USAREUR-AF.

NOTE: For questions regarding Defense Logistics Agency and AAFES-Eur procedures, contact the NATO SOFA Customs Policy Branch, CEA.

4-9. CUSTOMS CLEARANCE FOR PRIVATELY OWNED VEHICLES DONATED TO FAMILY AND MORALE, WELFARE, AND RECREATION

FMWR auto-skills centers will follow the procedures described in AE Regulation 190-1, paragraph E-5, for disposing of donated POVs.

4-10. CUSTOMS CLEARANCE FOR ABANDONED PRIVATELY OWNED VEHICLES

United States Army garrison directors of emergency services and USAFE/AFAFRICA chiefs of security forces will follow the procedures for disposing of abandoned POVs in accordance with AE Regulation 190-1, paragraph E-4.

4-11. CUSTOMS CLEARANCE FOR SURPLUS NONTACTICAL VEHICLES AND INTERAGENCY FLEET MANAGEMENT SYSTEM VEHICLES

Disposition for the General Services Administrations (GSA) fleet in Germany is handled through *VEBEG.*

a. The GSA interagency fleet management system (IFMS) representative will—

(1) Notify USACA-E 15 business days in advance of the date and location of a planned sale in writing.

(2) Provide to USACA-E 10 business days in advance with a list of the surplus IFMS NTVs. This list will include the items, the name and address of the buyer, the sales price, and the location of the items.

b. USACA-E personnel will schedule and conduct an on-site inspection to check the vehicle identification number, the engine size, the fuel type, and the weight of the vehicle for submission to the respective German customs office.

c. German customs will process the transfer and issue a customs-declaration form.

d. A vehicle will be only released to the buyer after the buyer has paid due duties.

CHAPTER 5
LENDING GOODS TO UNAUTHORIZED PERSONNEL (USE OF AEA FORM 550-175D)

5-1. GENERAL
Authorized personnel may lend goods to unauthorized personnel only as described in this publication. The borrower may not use the lender's personal items, domestic-use goods, or motor vehicles for business or commercial purposes.

a. Lending Personal or Domestic-use Goods (Other Than POVs). Authorized personnel may lend goods other than POVs to unauthorized personnel for personal or domestic use. These loans must be for brief periods and conform to the normal extent of social relations.

b. Lending POVs. Personnel may lend their vehicles (for example, motor vehicles, motorcycles, motor trailers, vessels, aircrafts) to visitors (including nondependent Family members), provided—

(1) The visitor is not an ordinary resident of Germany and does not plan to establish a residence in Germany.

(2) The lender obtains AEA Form 550-175D from a USACA-E field office. AEA Form 550-175D authorizes the visitor to independently operate the U.S. Forces-registered POV for a period not exceeding 90 calendar days within a 6-month period. The 90-day period begins on the day the visitor arrives in the EU.

NOTE: Requests for periods of more than 90 days or extensions of previously issued authorizations must be submitted in accordance with chapter 14 of this publication.

c. Use of POVs by Visiting Dependents. Visiting dependents of U.S. Forces personnel stationed in Germany may operate their sponsor's POV for up to 90 calendar days by obtaining AEA Form 190-1AP from the local USACA-E field office. If the visiting dependent intends to operate the POV for longer than 90 calendar days, a U.S. Forces Certificate of License (in accordance with AEA Reg 190-1) must be obtained.

5-2. APPLICABILITY
This chapter applies to—

a. U.S. military and civilian personnel assigned in Germany, their dependents, and non-German NATO military and civilian personal assigned to an IMH in Germany (AE Reg 600-700, chap 19).

b. Visitors who are not ordinarily resident in Germany.

5-3. PROCEDURES FOR OBTAINING AND SUBMITTING AEA FORM 550-175D AND AE FORM 190-1AP

a. Authorized personnel will—

(1) Request AEA Form 550-175D or AE Form 190-1AP at the local USACA-E field office.

(2) Present documents to prove their eligibility.

(3) Present the following, as applicable:

(a) The visitor's (non-EU) driver's license and corresponding international driver's permit (IDP) (glossary) issued by a competent authority of their home country (for example, AAA or AATA in the United States), or a certified German translation of the foreign driver's license, or another driver's license valid in Germany (EU driver's license).

(b) A copy of the visitor's passport or ID card.

(c) Verification of arrival (for example, an immigration stamp to prove the date of arrival in an EU country; travel itinerary for travel within EU countries).

(4) Sign AEA Form 550-175D and acknowledge the responsibilities listed in paragraph 5-4.

b. USACA-E personnel will—

(1) Verify the eligibility of the lending personnel and the visitor.

(2) Review the supporting documents.

(3) Issue AEA Form 550-175D or AEA Form 190-1AP in accordance with the CEA SOP.

5-4. RESPONSIBILITIES

a. Authorized personnel will ensure that—

(1) The visitor possesses and maintains an IDP or other driver's license valid in Germany while operating a U.S. Forces-registered POV.

(2) The insurance policy for the USAREUR-AF registered POV in question covers operation by the visitor.

(3) The visitor carries AEA Form 550-175D or AEA Form 190-1AP when independently operating the specified U.S. Forces-registered POV.

b. Authorized personnel will not—

(1) Let the visitor use the vehicle's AAFES-Eur fuel ration card to purchase duty- and tax-free fuel.

(2) Be reimbursed for the use of the vehicle.

CHAPTER 6
CUSTOMS CONTROLS AT MILITARY POST OFFICES IN GERMANY (USE OF AEA FORM 550-175E AND AEA FORM 550-175F)

6-1. GENERAL
Authorized personnel will use military post offices (MPOs) solely for personal purposes. Using MPOs for commercial or business purposes, or to send items intended for resale for a business or enterprise, is prohibited. Further restrictions are outlined in AEA Regulation 600-1, paragraph 16.

a. Personal mail sent through MPOs is subject to joint customs controls by U.S. Forces and German customs authorities. A military postal clerk must be present when HN officials inspect or detain the mail in any way.

b. Incoming and outgoing personal mail, except first-class mail, is subject to customs inspection according to applicable international agreements and USEUCOM Instruction (ECI) 8701.01A.

6-2. APPLICABILITY
This chapter applies to personnel authorized to use MPOs as prescribed in AE Regulation 600-700 and in accordance with ECI 8701.01A, enclosure A.

6-3. PROCEDURES
Customs controls at MPOs are conducted in accordance with ECI 8701.01A, enclosure D.

a. USACA-E (Unilateral) Customs Military Postal Inspections.

(1) USACA-E personnel will use AEA Form 550-175E during a unilateral military postal inspection when all of the following apply:

(a) Circumstances require the immediate opening of a shipment for further inspection.

(b) A legally obtained search authorization is on hand.

(c) The shipment contains authorized goods.

NOTE: In these cases, USACA-E personnel will reseal the shipment, complete AEA Form 550-175E, and attach it to the inspected shipment.

(2) USACA-E personnel will use AEA Form 550-175F during the course of an inspection when either the entire shipment or some of its contents are items that are considered either restricted or prohibited for import.

(a) If the entire contents of a shipment are determined to be either restricted or prohibited for importation, USACA-E personnel may decide to direct the entire shipment be “returned to sender.” In such cases, USACA-E personnel will annotate AEA Form 550-175F accordingly and ensure that a postal representative places it in the addressee’s mailbox.

(b) If contents (single items) are determined to be either prohibited or restricted for import, USACA-E personnel will annotate this on AEA Form 550-175F and ensure that a postal representative places it in the addressee's mailbox. Upon receipt of AEA Form 550-175F, the addressee can either accept the shipment and report to the competent USACA-E field office with the unopened shipment for further inspection and processing, or the addressee may opt to decline the shipment and return it to the sender as "Refused."

b. Joint German Customs and USACA-E (Bilateral) Military Postal Inspections. If, during a joint inspection, German customs authorities open a shipment for inspection and the shipment contains authorized goods, USACA-E personnel will complete AEA Form 550-175E, reseal the shipment, and attach a copy of the completed AEA Form 550-175E to the inspected shipment.

(1) When German customs authorities, in coordination with USACA-E personnel, determine that all the contents of a shipment are considered restricted or prohibited for importation, German customs may direct that the entire shipment be "returned to sender." In such cases, USACA-E personnel will annotate AEA Form 550-175F accordingly and have a postal representative place a copy of the completed AEA Form 550-175F into the addressee's mailbox.

(2) German customs authorities may also detain the shipment. In these cases, a copy of the completed AEA Form 550-175F or a German customs notification will be placed into the addressee's mailbox by a postal representative. Customs processing of such shipments is within the purview of German customs authorities, who may assess customs duties, taxes, or fines in accordance with their regulations. The addressee must pay the assessed duties and taxes to the appropriate German customs offices within 30 calendar days to receive the detained shipment. The addressee may also choose to decline the shipment. In this case, German customs authorities will dispose of the shipment as they deem necessary (for example, through destruction) in accordance with their regulatory guidelines.

CHAPTER 7
CUSTOMS CONTROLS OF MILITARY GROUP MOVEMENTS (USE OF AEA FORM 550-175G)

7-1. GENERAL
Movement commanders will coordinate troop movements across the German border with the CEA, OPM, HQ USAREUR-AF (AEOP-PM), Unit 29351, APO AE 09014-9351 (mil 537-3951).

7-2. APPLICABILITY
This chapter applies to U.S. military units stationed in Germany.

7-3. PROCEDURES

a. Military Group Movements During Exercises or Maneuvers. Military units or formations crossing the German land border into Germany from a foreign country during military exercises or maneuvers are not normally subject to German customs control if German customs authorities are notified in time. To ensure proper notification of German authorities, the unit must report to the CEA in writing (by memorandum or email) the place, date, and time of the proposed border crossing 5 business days in advance. The movement commander will complete AEA Form 550-175G and submit the form to German or U.S. military authorities, as appropriate, when entering Germany.

b. Military Group Movements for Other Reasons. Military units or formations crossing the German border for reasons other than military exercises normally will not be subject to German customs control. The movement commander of the unit or formation will complete AEA Form 550-175G and will submit the form to German or U.S. military authorities, as appropriate, when entering Germany. In addition, the movement commander will provide the following documents to the local German customs office where the crossing takes place:

(1) His or her ID card.

(2) Movement orders.

(3) A written statement confirming that the commander has taken all practical measures to ensure that no goods are carried by unit or formation members in violation of the NATO SOFA or Supplementary Agreement.

c. Equipment. Equipment and supplies that are shipped separately from the unit across the German border must be covered by NATO Form 302 according to USEUCOM Manual (ECM) 4504.01.

CHAPTER 8
CUSTOMS CONTROLS AT U.S. FORCES AIRFIELDS AND AIR BASES IN GERMANY (USE OF AEA FORM 550-175H AND AEA FORM 550-175J)

8-1. GENERAL

a. Customs Control and Responsibilities. Commanders of airfields and air bases (para 8-3), in coordination with USACA-E, are responsible for customs controls in accordance with the NATO SOFA and Supplementary Agreement for Germany. Airfield and air base commanders will establish written local procedures for customs processing of aircraft, crews, passengers, and cargo arriving at or departing from their airfields and air bases on international flights in accordance with this publication and HN laws and regulations. According to the Schengen Agreement, flights to and from the territories of the agreement's signatory states are considered domestic flights, provided the aircraft does not stop in the territory of a non-signatory state. At the time of publication of this regulation, the signatory states are Austria, Belgium, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hungary, Iceland, Italy, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, the Netherlands, Norway, Poland, Portugal, Slovakia, Slovenia, Spain, Sweden, and Switzerland. In addition, flights from the EU member states Bulgaria, Croatia, Cyprus, Ireland, and Romania are also considered domestic flights. The Azores, Madeira, and the Canary Islands are special EU members and part of the Schengen Area, even though they are located outside of the European continent. Flights from the United Kingdom are no longer considered domestic flights. Airfield and air base commanders will keep a current list of the Schengen States for easy reference.

NOTE: USACA-E personnel retain the discretion to conduct random spot checks on any and all aircraft arriving at air bases and airfields listed in paragraph 8-3 or 8-4.

b. Border Control and HN Immigration. Under customary international law and the applicable international agreements, border control falls within the responsibility of the HN. In most cases this also applies to arrivals at and departures from airfields on U.S. military installations in Germany. The *Bundespolizei* (BPOL) is the responsible German border control authority. Non-Schengen flights to or from an airfield not designated as a port of entry generally require BPOL coordination. USACA-E will coordinate for the information to be submitted to the appropriate BPOL directorate based on local agreements and procedures.

8-2. APPLICABILITY

This chapter applies to—

a. All personnel traveling on aircraft arriving and departing from airfields and air bases listed in paragraph 8-3.

b. All cargo on flights arriving and departing from airfields and air bases listed in paragraph 8-3.

c. Commanders of airfields and air bases listed in paragraph 8-3.

8-3. PROCEDURES

a. In general, the majority of U.S. Forces international military flights will depart from or land at only the following airfields and air bases, which are designated as international ports of entry:

(1) Ramstein Air Base.

(2) Spangdahlem Air Base.

b. U.S. Forces flights to or from non-Schengen locations departing from or arriving at U.S. Forces airfields and air bases, which are not designated as international ports of entry (for example, Coleman Army Airfield (Mannheim-Sandhofen), Grafenwöhr Army Airfield, Stuttgart Army Airfield, and Wiesbaden Army Airfield), may be authorized only under exceptional circumstances and with proper HN coordination through BPOL and Customs.

8-4. CUSTOMS PROCESSING OF AIRCRAFT

a. USACA-E personnel are responsible for enforcing customs regulations and may conduct customs inspections of arriving aircraft at the following airfields and air bases:

(1) Ramstein Air Base.

(2) Spangdahlem Air Base.

(3) Stuttgart Army Airfield.

(4) Wiesbaden Army Airfield.

b. In accordance with the applicable international agreements, local German customs authorities and the Border Police may also conduct ID checks and customs inspections at U.S. Forces airfields and air bases. German customs authorities will arrange for these inspections through the nearest USACA-E field office to establish mutually agreeable inspection times with the respective airfield or air base commander. ECM 4504.01 provides additional information.

c. At airfields without direct USACA-E support and in the absence of USACA-E customs inspectors, airfield and air base commanders will appoint airfield customs and border clearance agents (CBCAs) to conduct spot checks on arriving aircraft. Commanders will coordinate with USACA-E customs inspectors to schedule training for appointed personnel to act as CBCAs.

d. If a flight originating from outside the Schengen zone lands at a commercial airport or military airfield in Germany that is not listed in paragraph 8-3, aircraft commanders will comply with the customs controls in effect at that airfield. If no customs controls are in effect at that U.S. Forces airfield, the airfield commander will immediately notify the nearest USACA-E field office. Table 8-1 provides a list of German customs offices and USACA-E elements supporting customs inspections at airfields and air bases listed in paragraph 8-3 above.

8-5. CUSTOMS INSPECTIONS OF CREWS AND PASSENGERS

Appointed airfield and air base customs inspectors, or CBCAs, will conduct spot checks of arriving aircraft and inspect crew and passenger baggage. The customs inspectors will keep records of the performed checks on file for 90 calendar days. Commanders of airfields and air bases and USACA-E personnel will ensure that—

a. Aircraft commanders of international flights terminating at or departing from the airfield or air base complete AEA Form 550-175H.

b. Completed copies of AEA Form 550-175H are filed with applicable international flight plans.

c. Aircraft commanders of international flights terminating in Germany obtain either oral or written customs declarations from the passengers. Aircraft commanders must obtain written customs declarations if imported items exceed authorized amounts. Airfield and air base commanders may also require oral or written customs declarations from passengers departing from their airfield or air base. Passengers will make written declarations by completing AEA Form 550-175J.

d. USACA-E must be notified well in advance (in accordance with local SOPs or BPOL arrangements) when non-U.S. Forces personnel are to arrive at or depart from a U.S. airfield or air base on an international flight originating from outside the Schengen zone. USACA-E personnel will arrange for the necessary customs clearance. The notification will include the following information:

(1) The number of persons on the flight.

(2) The time of arrival.

(3) The number of pieces of baggage carried by the persons concerned.

(4) Other pertinent details (for example, firearms, medical supplies).

e. Passengers will be afforded privacy during detailed inspections of baggage and personal belongings.

8-6. UNAUTHORIZED OR EXCESSIVE IMPORTS

When restricted items that do not meet the conditions of their restriction (for example, excessive amounts) are detected, or when prohibited items are found, German customs officials, USACA-E personnel, or designated U.S. Forces air base and airfield customs personnel will seize the unauthorized imports (also see AE Reg 190-62, app B). Customs officials will provide a receipt (DA Form 4137 or AF Form 52) to passengers or crew members if property is seized. Customs officials will also give the individual a written explanation of his or her rights and the address of the local German customs office to which the property will be released. Seized or detained goods will be turned over to the local German customs office within 8 business days after seizure. Chapter 1 of this publication provides more information regarding restricted and prohibited items.

8-7. CUSTOMS PROCESSING OF CARGO

Organizations sending U.S. Forces official consignments on international flights through U.S. Forces airfields or air bases must include NATO Form 302 with the cargo (in accordance with ECM 4504.01 and Defense Transportation Regulation (DTR) – Part V. Designated airfield or air base personnel and customs clearance officers (CCOs) accredited in accordance with ECM 4504.01 will check and stamp all copies of NATO Form 302 for U.S. Forces official consignments scheduled to leave or arrive in Germany on an international flight.

a. Consignments Leaving Germany. Airfield or air base customs officials will remove the NATO Form 302 copy marked "*Für den Zoll in Deutschland*" (for customs in Germany) and keep it on file for 1 year. U.S. Forces air operations personnel will notify USACA-E to arrange for customs clearance if U.S. cargo without NATO Form 302 or non-U.S. cargo is due to be flown out of the airfield or air base on an international flight.

b. Consignments Arriving in Germany. Airfield or air base officials will not release official cargo to consignees until the consignee's representative has signed a receipt for the accompanying copies of NATO Form 302. The representative may be a U.S. Forces member as outlined in ECM 4504.01. Airfield and air base personnel will remove the NATO Form 302 copy marked "*Für den Zoll in Deutschland*" and keep it on file for 1 year. Other copies will be given to the consignee for disposition according to applicable U.S. and German regulations, including ECM 4504.01 and the DTR. U.S. Forces air operations personnel will notify USACA-E to arrange for customs clearance whenever cargo without NATO Form 302 or non-U.S. shipments arrive on international flights.

Table 8-1
German Customs Offices and U.S. Army Customs Agency–Europe Field Offices Supporting Customs Control at U.S. Forces Airfields and Air Bases in Germany

Airfield or Air Base	German Customs Office	USACA-E Field Office
Grafenwöhr Army Airfield	Zollamt Weiden-Waidhaus Dr.-Müller-Str. 11 92637 Weiden/Oberpfalz	Grafenwöhr Field Office Unit 28130 APO AE 09114-8130 mil 569-2896/2897
Ramstein Air Base	Zollamt Kaiserslautern Von-Miller-Str. 13 67661 Kaiserslautern-Einsiedlerhof	Ramstein Field Office Unit 3135 APO AE 09094-3135 mil 480-4845/7168
Spangdahlem Air Base	Zollamt Wittlich Max-Planck-Str. 13 54516 Wittlich	Spangdahlem Field Office* Unit 3720 APO AE 09126-3720 mil 452-4500/8976
Stuttgart Army Airfield	Zollamt Flughafen Stuttgart Luftfrachtgebäude 605/6 70629 Stuttgart-Echterdingen	Stuttgart Field Office Unit 30401 APO AE 09107-0401 mil 596-2657/2732
Wiesbaden Army Airfield	Zollamt Wiesbaden Rheingaustr. 190-196 65203 Wiesbaden	Wiesbaden Field Office Unit 24335 APO AE 09005-4335 mil 537-3933/3932
Coleman Army Airfield (Mannheim-Sandhofen)	Zollamt Mannheim Fruchtbahnhofstr. 1 68159 Mannheim	Wiesbaden Field Office Unit 24335 APO AE 09005-4335 mil 537-3933/3932

*The Spangdahlem Field Office will also coordinate customs-control support for the NATO air bases in Büchel and Geilenkirchen.

CHAPTER 9
CUSTOMS POLICY AND PROCEDURES FOR RETIRED U.S. MILITARY PERSONNEL, SELECT VETERANS, UNACCOMPANIED DEPENDENTS, WIDOWS OR WIDOWERS, AND VETERAN HEALTH IDENTIFICATION CARD HOLDERS IN GERMANY (USE OF AEA FORM 550-175K)

9-1. GENERAL

a. According to the NATO SOFA and the Supplementary Agreement, only military and civilian component personnel and their Family members are entitled to full individual logistic support (ILS) when stationed in Germany. Other personnel are not authorized customs and tax entitlements in Germany, except as specified in this chapter. These entitlements are based on agreements and exceptions to policy concluded between the U.S. Forces CEA for Germany and the German Federal Finance Ministry. The personnel concerned include retired U.S. military personnel, gray-area retirees, and their dependents; unaccompanied dependents; widows or widowers; unaccompanied dependent children of military personnel; 20/20/20 spouses (glossary); and veterans in possession of a veteran health identification card (VHIC) displaying the veteran's eligibility status (Purple Heart, Former POW, or Service Connected).

b. The accompanying dependents and widows or widowers of gray-area retirees are treated the same as the accompanying dependents and widows and widowers of retired U.S. military personnel in Germany.

c. Personnel who are discharged from the military and remain in Germany lose their NATO SOFA status and entitlements on the day the discharge takes effect. Civilian component personnel who are terminated or who resign from U.S. Federal service lose their ILS on the day their employment ends. Dependents lose their NATO SOFA status and privileges upon termination of their sponsor or by divorce (AE Reg 600-700).

d. Former spouses of either active-duty military personnel or military retired personnel are generally not entitled to customs and tax privileges in Germany except as outlined in this publication.

e. Abused dependents who are receiving transitional compensation from one of the military Services may contact the CEA by email at *usarmy.wiesbaden.usareur.mbx.nato-sofa@army.mil* for determination of their entitlements and a possible exception to policy (ETP).

f. Retired nonmilitary personnel are not entitled to customs and tax privileges in Germany unless otherwise eligible in accordance with AE Regulation 600-700.

NOTE: This publication does not grant authorization for customs and tax exemptions or entrance to U.S. Forces facilities. Respective authorization documents must be obtained as specified in this chapter.

9-2. RETIREMENT AND LOSS OF STATUS

Personnel who plan to remain in Germany upon loss of their SOFA status must adhere to HN immigration rules. For proper procedures, personnel should contact their local legal assistance office.

a. Retirement in Germany.

(1) U.S. military and civilian component personnel retiring in Germany lose customs and tax privileges at 0001 on the day following their retirement, unless they are immediately employed with the U.S. Forces in a position that entitles them to continued ILS. The loss of status also applies to the member's dependents.

(2) Retired personnel must remove their POVs and POFs from the U.S. Forces registration system no later than the day they lose privileges. They must also inform the German customs office responsible for the area in which they reside of the change in their status, and must obtain customs clearance certificates to register their POVs and POFs in the German registration systems.

(3) Retired U.S. military and civilian component personnel and dependents who are not ordinarily resident in Germany, and who are employed by the U.S. Forces or a U.S. Forces nonappropriated fund instrumentality (NAFI) for 20 hours or more per week, are considered members of the civilian component and are authorized full ILS during their employment (AR 215-4).

b. Unaccompanied Dependents Remaining in Germany.

(1) Dependents of U.S. Forces military and civilian personnel assigned in Germany with SOFA status, who remain in Germany after their sponsor's death or transfer from Germany (hereafter referred to as "unaccompanied dependents"), will retain ILS and SOFA status for 90 calendar days after the sponsor's death or transfer. This time is referred to as the 90-day grace period and starts on the day following the Servicemember's date of death or report date to the new permanent duty station. Unaccompanied dependents remaining in Germany lose SOFA status and ILS at 0001 on the day after the last day of the 90-day grace period.

(2) Within the 90-day grace period, unaccompanied dependents of active-duty military personnel will do the following:

(a) Surrender their ration cards to their sponsor's former command, obtain a regular-fee (tourist) passport, have their no-fee passport canceled, and have their SOFA identification voided.

(b) Inform the German customs office responsible for the area in which they live of their change of status and obtain customs clearance to register any POVs and POFs in the German registration systems.

NOTE: The 90-day grace period is based on international law and cannot and will not be unilaterally extended. Limited customs privileges may be requested in hardship cases in accordance with chapter 14 of this regulation for proper staffing.

c. SOFA Status Retention for Unaccompanied Dependents Whose Sponsor Will Return to Germany. Unaccompanied dependents of U.S. Forces military personnel who remain in Germany after their sponsor leaves Germany for a stay outside the federal territory with a projected return to Germany may retain SOFA status for the time of their sponsor's absence from Germany if the sponsor leaves to—

(1) Undergo training in the United States with orders reassigning him or her to Germany after the training.

(2) Complete a dependent-restricted tour and receives the follow-on assignment to Germany.

NOTE: Requests for support with orders identifying the follow-on assignment (unit and APO AE) to Germany must be sent to the CEA, OPM, by mail to HQ USAREUR-AF (AEOP-PM-CE), Unit 29351, APO AE 09014-9351, or by email: *usarmy.wiesbaden.usareur.mbx.nato-sofa@army.mil*.

d. Unaccompanied Dependents Whose Sponsor Has a TDY En-route Assignment.

(1) Unaccompanied dependents of U.S. Forces military personnel who remain in Germany after their sponsor departs Germany for an assignment with TDY en-route maintain their SOFA status throughout their sponsor's TDY en-route assignment (see also AE Reg 612-1, para 14).

(2) The 90-day grace period begins on the day the sponsor reports to the new permanent duty station following completion of the TDY assignment (AE Reg 600-700, table 7).

9-3. ELIGIBILITY FOR USE OF U.S. FORCES SALES FACILITIES IN GERMANY

The following categories of personnel may be authorized to make purchases at U.S. Forces sales facilities in Germany (see also AE Reg 600-700), with the requirement of paying duties to the respective German customs office:

a. Retired U.S. military personnel (including gray-area retirees) and their dependents who visit Germany for at least 30 uninterrupted days. This does not apply to "visiting" unaccompanied dependents.

b. Retired U.S. military personnel (including gray-area retirees) and their dependents with a permanent residence in Germany.

c. Widows or widowers (and their accompanying children) whose sponsor died while on active duty or in retired status (including gray-area retirees), who have not remarried, and who reside in Germany.

d. Unaccompanied spouses and dependents who reside in Germany, for example:

(1) Unaccompanied dependents remaining in Germany beyond the 90-day grace period after their sponsor's direct assignment from Germany to a restricted or short-tour area for the duration of the restricted or short-tour assignment.

(2) Unaccompanied dependents residing in Germany after their military sponsor departs for a restricted or short-tour area from a duty station outside Germany for the duration of the restricted or short-tour assignment.

(3) Unaccompanied dependent children residing in Germany after their sponsor (active-duty or retired military) departs Germany.

(4) Unaccompanied dependent children residing in Germany whose active-duty or military retired sponsor has died.

(5) Dependents residing in or moving to Germany whose sponsor is a prisoner of war or is missing in action.

(6) 20/20/20 spouses (AE Reg 600-700).

(7) Dependent spouses of retirees residing in Germany without their sponsor.

e. Veterans in possession of a VHIC displaying the veteran's eligibility status (Purple Heart, Former POW, or Service Connected).

f. Personnel listed in subparagraphs a through d above who are medically incapacitated (for example, retirees, widows or widowers) may request to appoint a shopping assistant (SA) to make purchases on the personnel's behalf. A SA may also be the legal guardian of a minor (17 years or younger) unaccompanied dependent child.

g. For personnel listed in subparagraph e above, a primary or Family caregiver may be appointed to act as a SA if in possession of a VA eligibility letter.

NOTE: The use of FMWR sales facilities and other FMWR tax privileges (for example, pay services) for certain non-SOFA-status defense beneficiary personnel (in accordance with this chapter) visiting or residing in Germany is authorized (based on an ETP by the FMOF, dated 27 August 2020, as provided in appendix F – note that the 19 December 2018 version of AE Regulation 600-700 does not yet reflect this ETP). The use of FMWR sales facilities and FMWR tax-free services for personnel will also be incorporated into the next revision of AE Regulation 600-700.

9-4. PROCEDURES FOR OBTAINING AND SUBMITTING AEA FORM 550-175K

a. Before using U.S. Forces sales facilities to purchase goods, personnel listed in paragraph 9-3 will register first with USACA-E and then with German customs authorities. Personnel must apply for AEA Form 550-175K at a USACA-E field office (app B, table B-1) and present documents and supporting information to prove their eligibility as follows:

(1) Retired U.S. military personnel (including gray-area retirees) and their dependents who visit Germany for at least 30 uninterrupted days (para 9-3a) will present the following:

(a) Their DOD ID cards.

(b) Their passports or national identity cards.

(c) Their travel itineraries (if applicable).

(2) Retired U.S. military personnel (including gray-area retirees) and their dependents with a residence in Germany (para 9-3b) and personnel listed in paragraphs 9-3c and d will present the following:

(a) Their DOD ID cards.

(b) Their passports or national identity cards.

(c) Their residence permit or other applicable documents.

(d) The sponsor's deployment orders (paras 9-3d(1) and (2)).

(3) Personnel requesting SAs, or SAs for personnel in paragraphs 9-3a through d, will present the following:

(a) The DOD ID card, passport, or national identity card, and residence permit of personnel represented.

(b) The passport, or national identity card, of the SA.

(c) A letter of appointment for the SA signed by respective DOD ID card holder.

(d) Medical verification of incapacitation (as applicable).

(e) Verification for legal guardianship (as applicable).

NOTE 1: Dependents must present verification of their sponsor's status to be issued AEA Form 550-175K. AEA Form 550-175K is valid for 12 months after the issue date or for the period that all supporting documents are valid, whichever is shorter.

NOTE 2: Whether or not personnel are entitled to use AAFES-Eur, DeCA facilities, or both, is stated on the DOD ID card. The Military Personnel Branch, Office of the Assistant Chief of Staff, G1, IMCOM-Europe (mil 544-1540), may provide information about these entitlements.

(4) Veterans (para 9-3e) and primary or Family caregivers (para 9-3f) with a residence in Germany or visiting Germany for at least 30 uninterrupted days will present the following:

(a) Their VHIC displaying the veteran's eligibility status (Purple Heart, Former POW, or Service Connected).

(b) Their passport or national identity card.

(c) Their residence permit or other applicable documents (for example, visa, itinerary).

(5) Primary or Family caregivers acting as SAs for personnel in paragraph 9-3e will present the following:

(a) The VHIC, passport, national identity card, and residence permit of personnel represented.

(b) The passport, or national identity card, of the primary or Family caregiver.

(c) A VA eligibility letter.

b. USACA-E personnel will—

(1) Review the supporting documents.

(2) Verify the eligibility of the personnel to be registered.

(3) If the personnel is eligible, issue AEA Form 550-175K in accordance with the CEA SOP.

(4) Issue a second copy of AEA Form 550-175K to SAs to accompany an installation pass application package (AEA Reg 190-16).

c. Upon receipt of AEA Form 550-175K, personnel will report to the local German customs office responsible for the area in which the applicant resides or that the applicant visits. The German customs office will issue German customs Form 0217 (hereafter referred to as "Pink Card"), which is valid for up to 12 months.

NOTE: German customs office personnel will list the SA on the Pink Card as *Erfüllungsgehilfe*.

9-5. CONDITIONS FOR SHOPPING AT U.S. FORCES SALES FACILITIES IN GERMANY

a. To use U.S. Forces sales facilities—

(1) Personnel listed in paragraph 9-3a through e must have a valid Pink Card and a U.S. Forces ID card (or VHIC) proving their status as an eligible patron.

(2) SAs (paras 9-3f and g) must have the following documents in their possession when using U.S. Forces sales facilities in Germany:

(a) A valid installation access document (installation pass or CAC).

(b) A valid Pink Card identifying them as a SA.

b. Personnel who hold a valid Pink Card—

(1) May purchase nonrationed items for their personal or domestic use from U.S. Forces sales facilities. Sales personnel will annotate the purchase of each item costing 250 dollars or more on the Pink Card. Unaccompanied dependents are excluded from NAFI membership and may not purchase NAFI merchandise, except food and drinks for immediate consumption, as invited guests of members of military clubs (AR 215-1).

(2) Will report all purchases to the servicing German customs office before the 5th business day of the next month (unless otherwise agreed with their servicing German customs office) to present receipts collected at U.S. Forces sales facilities during the preceding month. German customs officials will assess a lump-sum duty (presently 17.5 percent) on items that cost less than the U.S. dollar equivalent of 50 euros. For items that cost the U.S. dollar equivalent of 50 euros or more, German customs authorities will charge customs duties at the regular tariff rate, plus 19 percent import value-added tax (*Einfuhrumsatzsteuer*). Upon payment of all duties, German customs authorities will stamp the Pink Card with a date stamp. Retired personnel visiting Germany may agree with German customs authorities on a specific date to present their receipts before leaving Germany.

(3) May be required by German customs to sign a statement if they did not buy anything at U.S. Forces sales facilities during their Pink Card's whole validity period. The statement will verify that they made no purchases and permit German customs to transmit their personal data to USACA-E for investigation purposes.

(4) Are subject to German legal action and may lose their entitlements to shop at AAFES-Eur and DeCA facilities in Germany if they fail to fully comply with the requirements in this paragraph.

c. SAs will—

(1) Not make purchases for their personal use.

(2) Comply with subparagraph b above on behalf of the Pink Card holder.

d. U.S. Forces sales facility personnel will—

(1) Verify the eligibility of personnel listed in paragraph 9-3 by checking—

(a) The DOD ID card and Pink Card of retirees, widows or widowers, and unaccompanied dependents.

(b) The installation access document, VHIC, and Pink Card of VHIC holders.

(c) The DOD ID card or VHIC of the entitled person, the identity document of the SA, and the valid Pink Card of individuals that are SAs.

(2) Annotate purchases with a single-item value of more than 250 U.S. dollars on the back side of the Pink Card.

(3) Report abuse to USACA-E.

9-6. USE OF THE MILITARY POSTAL SERVICE IN GERMANY

In accordance with AE Regulation 600-700, authorized personnel may use the MPS in Germany without having to register with USACA-E or German customs authorities.

a. To obtain approval, authorized personnel must submit a completed AEA Form 600-8-3C to their local MPO (AEA Reg 600-8-3). If the application is approved, authorized personnel may receive mail through the Box-R service or the Family member general delivery service only. The following restrictions apply to mail delivered through these services:

(1) Incoming and outgoing mail may not exceed a weight of 16 ounces.

(2) Noncommercial mail exclusively for personal use (for example, gifts) received without payment from a private person located in a third country outside the EU may be received if the customs value of the goods does not exceed 45 euros.

NOTE: Limitations exist for customs- and tax-free receipt of noncommercial mail with regard to goods which are subject to excise tax (for example, alcohol, coffee, tobacco, perfume).

(3) All commercial consignments (for example, any and all goods received from a commercial vendor or against payment) sent from a third country (glossary) outside the EU must be presented to the local German customs office for assessment of import VAT and excise duties. Any applicable dollar or euro limitations or exemptions will be published by postal authorities along with procedures for processing commercial consignments.

b. Exportation of noncommercial goods through the MPS is authorized, but individual country restrictions and prohibitions apply.

c. When mail received at an MPO fails to meet any of the criteria in subparagraph a, MPO personnel will return the mail to the sender and inform the recipient accordingly in writing. The notice will identify the sender and the date the mail was returned.

d. The use of the MPS is subject to spot checks by German customs authorities and USACA-E personnel. Misuse or abuse may result in loss of MPS privileges. Violators may also be subject to administrative action by German customs authorities.

CHAPTER 10
SHORT-TERM FUEL RATION CARDS (USE OF AEA FORM 550-175L)

10-1. GENERAL
The U.S. Forces use an automated fuel ration card system for POVs registered in the USAREUR-AF system in Germany. These cards may only be used to refuel the vehicle they are assigned to. Authorized personnel (AE Reg 600-17, para 9 and app C) who want to purchase tax- and duty-free fuel for rental vehicles or POVs registered outside of Germany must obtain AEA Form 550-175L and a short-term fuel ration card for those vehicles. The short-term fuel ration card will be issued based on the data reflected on AEA Form 550-175L.

a. The authorized fuel ration entitlement on AEA Form 550-175L is prorated and depends on the number of calendar days remaining on the rental contract, TDY, leave, or pass at the time AEA Form 550-175L and the short-term fuel ration card are issued and activated. Short-term fuel ration increments are as follows:

(1) 100 liters for 1 through 7 days.

(2) 200 liters for 8 through 14 days.

(3) 300 liters for 15 through 21 days.

(4) 400 liters for 22 through 30 days.

b. AEA Form 550-175L may be issued for a maximum of 30 calendar days and will reflect the validity period (this expiration date will also be annotated on the card). If a short-term fuel ration card is needed for more than 30 calendar days, authorized personnel must obtain another AEA Form 550-175L to apply for an additional short-term fuel ration card.

c. Personnel must obtain their short-term fuel ration card as early as possible. Failure to obtain AEA Form 550-175L and the corresponding AAFES-Eur fuel ration card at the earliest date possible may lead to a decrease or loss of fuel ration entitlements.

10-2. APPLICABILITY
This chapter applies to the following personnel:

a. U.S. military and civilian personnel who are—

(1) Stationed in Germany, and to their dependents who rent a vehicle for their personal convenience.

(2) On leave or pass in Germany from a duty station (temporary or permanent) in Europe or North Africa, and who rent a vehicle or use their POV which is registered outside of Germany. This does not apply to unaccompanied dependents.

(3) On official duty or TDY in Germany and who rent a vehicle or use their POV registered outside of Germany (shipping plates are not considered proof of a registration outside of Germany).

(4) On rest and recuperation (R&R) leave in Germany from deployment to Iraq, Kuwait, or Afghanistan in accordance with AE Supplement 1 to AR 600-8-10.

b. U.S. Reserve and National Guard personnel serving on active duty in Germany.

c. NATO personnel assigned to an IMH in Germany or on TDY to an IMH in Germany from an IMH outside of Germany. A list of IMHs in Germany can be found in AEA Regulation 600-700.

d. U.S. embassy or consular personnel entitled to ILS in accordance with AEA Regulation 600-700.

10-3. PROCEDURES FOR OBTAINING AEA FORM 550-175L AND A SHORT-TERM FUEL RATION CARD

a. Authorized personnel will—

(1) Request AEA Form 550-175L at the local USACA-E field office or other issuing authorities (table B-1) and present the following:

(a) Identification documents (DOD ID card, foreign forces ID card).

(b) Supporting documents, as applicable:

1. A rental contract (glossary) from a licensed vehicle rental agency (glossary). The rental contract must reflect the name of the authorized personnel.

2. The vehicle-registration document.

3. Their orders (for example, activation, assignment, TDY, R&R), if applicable.

4. Their leave form or official pass form, if applicable.

(2) Present AEA Form 550-175L to the local AAFES-Eur facilities to obtain a short-term fuel ration card.

b. USACA-E personnel and issuing authorities will—

(1) Verify the eligibility.

(2) Review the supporting documents.

(3) Issue AEA Form 550-175L in accordance with AE Regulation 600-17.

c. USACA-E personnel or issuing authorities will not issue AEA Form 550-175L for vehicles or rental agreements with an agency that is not a licensed vehicle rental agency. Exceptions must be submitted in accordance with chapter 14 of this publication.

d. AAFES-Eur facilities will issue a short-term fuel ration card based on the information on the approved AEA Form 550-175L.

10-4. RATION AMOUNTS AND ADDITIONAL GUIDANCE

AE Regulation 600-17, table C-2, prescribes ration amounts. Servicing USACA-E field offices can provide additional guidance.

10-5. LOST OR STOLEN SHORT-TERM FUEL RATION CARDS

Personnel will immediately report lost or stolen short-term fuel ration cards to AAFES-Eur Customer Service (email: *yyEUEssoFuelCard@aafes.com* or telephone: 06302-6098-336/402) and the CEA (mil 537-3955, civ 0611-143-537-3955).

CHAPTER 11
CUSTOMS EXEMPTIONS AND LIMITED INDIVIDUAL LOGISTIC SUPPORT FOR FOREIGN LIAISON PERSONNEL INVITED OR ACCREDITED BY THE CDRUSEUCOM; CDRUSAFRICOM; CG, USAREUR-AF; COMUSAFE; OR CNE-CNA-C6F IN GERMANY (USE OF AEA FORM 550-175M)

11-1. GENERAL
Non-Sending State personnel from NATO member countries who perform liaison functions with the U.S. Forces in Germany at USEUCOM, USAFRICOM, USAREUR-AF, USAFE/AFAFRICA, or NAVEUR-NAVAF do not qualify for the full range of ILS. They can, however, receive limited ILS with an ETP from the USAREUR-AF PM coordinated with the German central customs authority.

11-2. APPLICABILITY

a. This chapter applies to the following personnel:

(1) Personnel from non-Sending State NATO countries who are performing liaison functions with U.S. military missions in Germany and are invited or accredited by the CDRUSEUCOM; the CDRUSAFRICOM; the CG, USAREUR-AF; the COMUSAFE; or the CNE-CNA-C6F.

(2) Dependent spouses accompanying personnel specified in (1) above.

b. This chapter does not apply to—

(1) NATO personnel assigned to IMHs and activities (AE Reg 600-700, chap 19).

(2) Foreign military personnel from any country not falling under subparagraph a above (see also para 11-5).

11-3. PROCEDURES FOR SUBMITTING AEA FORM 550-175M

a. Sponsoring organizations will—

(1) Contact the CEA, OPM, HQ USAREUR-AF (AEOP-PM-CE), Unit 29351, APO AE 09014-9351 (email: *usarmy.wiesbaden.usareur.mbx.nato-sofa@army.mil*; mil 537-3929/3960).

(2) Ensure liaison personnel meet DOD visitor guidelines according to the instructions provided by the USAREUR-AF Liaison Office, U.S. Embassy Berlin (email: *usarmy.badenwur.usareur.mbx.usareur-lno-berlin-group@army.mil*), and, as applicable, provide the approved foreign visitor request (FVR).

(3) Identify persons eligible for support and submit AEA Form 550-175M to the CEA, OPM, HQ USAREUR-AF (email: *usarmy.wiesbaden.usareur.mbx.nato-sofa@army.mil*) along with the following supporting documents:

(a) An applicable intercountry memorandum of agreement (MOA), command (CMD) memorandum, or invitation letter.

(b) NATO orders.

(c) An approved FVR.

(4) Be responsible for issuing U.S. Forces ration cards (AEA Form 600-702A) in accordance with the basic amounts authorized in AEA Regulation 600-702, table C-1.

b. The CEA will issue the following to NATO liaison personnel from non-Sending State nations and their accompanying spouses:

(1) AEA Form 600-700A.

(2) Temporary authorization cards (TACs) to accompanying spouses of German NATO liaison personnel, as applicable.

NOTE: AEA Form 600-700A and the TAC will list specific customs and tax exemptions in accordance with this chapter and AE Regulation 600-700, chapter 16.

11-4. AUTHORIZED SUPPORT

a. NATO liaison personnel from countries other than the Sending States or Germany and their accompanying spouses are authorized to do the following:

(1) Use exchange facilities in Germany to purchase tax- and duty-free goods for personal use and consumption with a value not exceeding 25 euros per individual item.

(2) Use commissaries in Germany to purchase tax- and duty-free goods for personal use and consumption with a value not exceeding 25 euros per individual item.

NOTE: Commissary access is granted only to foreign military personnel; spouses of foreign military personnel and civilians are excluded from access absent an ETP from the DOD in accordance with DOD Instruction (DODI) 1330.17.

(3) Use U.S. Forces catering facilities in Germany, including food courts, restaurants, snack bars, and vending machines, to buy items for immediate consumption.

(4) Use military banking facilities (for foreign liaison officers (FLOs) only)—

(a) To exchange currency of up to 250 U.S. dollars per day.

(b) For the exclusive purpose of paying rent for U.S. Government housing to the U.S. Treasury (for example, the purchase of money orders or cashier's checks made payable to a U.S. Government agency).

(5) Use U.S. Forces POV licenses and POV registration or listing (FLOs only).

(6) Use local "no-fee" FMWR services. Not authorized are for-fee activities and the use of co-use facilities (for example, golf courses, Rod & Gun clubs, other FMWR services that require the payment of fees), unless invited by authorized personnel as bona-fide guests. The FMWR Bingo program and the use of Army recreation machine program (ARMP) gaming devices ("slot machines") is not authorized.

(7) Use Armed Forces Recreation Center (AFRC) facilities.

(8) Purchase fuel rations limited to 200 liters of fuel per vehicle per month. Authorization is granted only when the POV is listed in the U.S. Forces POV registration system. The spouse may be entered as an authorized driver on the fuel ration card and is authorized to independently use the POV. Petroleum, oil, and lubricants (POL) rations are not authorized for short-term rental vehicles.

(9) Purchase rationed items using AEA Form 600-702A (limited to 200 cigarettes per week, 2.5 kilograms of coffee per month, 6 liters of alcohol per month).

(10) Transient billets in accordance with an applicable intercountry MOA, CMD memorandum, or invitation letter.

NOTE: Personnel defined in subparagraph a above are generally not authorized to use the MPS and should consult DOD 4525.6-M to determine when use may be authorized.

b. German liaison personnel are authorized to do the following:

(1) Use exchange facilities in Germany to purchase tax- and duty-free goods for personal use and consumption with a value not exceeding 25 euros per individual item.

(2) Use commissaries in Germany to purchase tax- and duty-free items for personal use and consumption with a value not exceeding 25 euros per individual item.

(3) Use U.S. Forces catering facilities in Germany, including food courts, restaurants, snack bars, and vending machines, to buy items for immediate consumption.

(4) Use military banking facilities—

(a) To exchange currency of up to 250 U.S. dollars per day.

(b) For the exclusive purpose of paying rent for U.S. Government housing to the U.S. Treasury (for example, the purchase of money orders or cashier's checks made payable to a U.S. Government agency).

(5) Use U.S. Forces POV registration or listing.

(6) Use local "no-fee" FMWR services. Not authorized are for-fee activities and the use of co-use facilities (for example, golf courses, Rod & Gun clubs, other FMWR services that require the payment of fees), unless invited by authorized personnel as bona-fide guests. The FMWR Bingo program and the use of ARMP gaming devices ("slot machines") is not authorized.

(7) Use AFRC facilities.

(8) Purchase rationed items using AEA Form 600-702A (limited to 200 cigarettes per week, 2.5 kilograms of coffee per month, 6 liters of alcohol per month).

(9) Purchase up to 50 liters of rationed fuel per vehicle per month. Authorization is granted only when the POV is listed in the U.S. Forces POV registration system. Fuel rations are authorized for the sponsor only. The spouse may act on the sponsor's behalf, but the specified ration quantity of 50 liters per month cannot be exceeded. POL rations are not authorized for short-term rental vehicles.

(10) Use transient billets in accordance with an applicable intercountry MOA, CMD memorandum, or invitation letter.

NOTE 1: Commissary access is granted only to foreign military personnel; spouses of military personnel and civilians are excluded from access absent an ETP from the DOD in accordance with DODI 1330.17.

NOTE 2: Spouses of German NATO liaison personnel are authorized to make purchases on behalf of their sponsor at United States Forces sales facilities. Spouses are also authorized to purchase ready-made food at catering facilities for immediate consumption. The CEA will issue a TAC reflecting those privileges.

11-5. SPECIAL INSTRUCTIONS

Sponsoring organizations of FLOs or personnel performing other liaison functions in conjunction with U.S. Forces exercises and missions not covered by this chapter may submit AEA Form 550-175M with an ETP in accordance with chapter 14 of this regulation. The CEA may, in coordination with German authorities, authorize other personnel privileges on a case-by-case basis.

CHAPTER 12
TEMPORARY AUTHORIZATION CARDS

12-1. GENERAL

a. Non-Sending States military and civilian-component personnel are not eligible for the same privileges as Sending State personnel. However, based on an exception approved by the FMOF, the USAREUR-AF PM is authorized to grant limited ILS on a temporary basis to personnel in the categories listed in paragraph 12-2. The USAREUR-AF PM, through the CEA as the mission operator, is required to document this authorization by issuing individuals a TAC.

b. Official visitors from outside of Germany must comply with the provisions of the German Residency Act (*Aufenthaltsgesetz*). The visitor and the visitor's parent country (not the U.S. sponsor) are responsible for ensuring that the visitor is authorized to enter Germany and possesses the proper documentation.

c. Commissary access may be granted only to members of the U.S. Forces and foreign military personnel. Foreign civilians and non-DOD U.S. civilians are excluded from use unless the DOD has granted an exception.

12-2. APPLICABILITY

a. Official Visitors of Events Sponsored by the U.S. Forces or a NATO IMH in Germany. This category of visitors includes official visitors, regardless of their nationality, who are not eligible to receive ILS in Germany and who attend activities sponsored by U.S. Forces or NATO IMH military agencies, organizations, or units on U.S. Forces installations in Germany, including the George C. Marshall Center.

(1) Official visitors may also include any of the following:

(a) Civilian or military personnel from non-Sending-State armed forces.

(b) Government employees of any nation who are not directly employed by their country's armed forces (for example, U.S. agents of the Federal Bureau of Investigation, U.S. State Department personnel, foreign law-enforcement officers).

(c) German military (*Bundeswehr*) personnel who are attending courses at the George C. Marshall Center, taking part in U.S. Forces exercises in Germany, or taking part in other U.S. official events in Germany.

(2) According to AE Regulation 600-700, chapter 9, this policy does not apply to civilian contractor personnel who are performing work in Germany without technical expert status accreditation (TESA). Non-TESA contractors are usually granted entry into Germany for a short term (that is, in TDY or travel status) using a process known as the "fax-back procedure" and are therefore also known as "fax-back contractors."

b. Distinguished Visitors (DVs) Invited by U.S. Forces Senior Leaders in Germany. Civilian and military DVs who are invited to Germany by a designated U.S. Forces senior leader in Germany may be authorized limited temporary ILS. For limited-ILS purposes, a designated U.S. Forces senior leader in Germany is a command-group member of a combatant command (that is, USAFRICOM, USEUCOM, and USSOCOM), a Service component command (that is, NAVEUR-NAVAF (including MARFOREUR/AF), SOCAFRICA, SOCEUR, USAFE/AFAFRICA, SETAF-AF, and USAREUR-AF), or IMCOM-Europe.

(1) DVs may include (but are not limited to) the following:

(a) Senior civilian or military personnel of other nations (holding a rank either equivalent to or higher than that of a general officer).

(b) Members of Congress and Senate.

(c) Senior members of non-DOD U.S. Government agencies.

(d) Senior members of religious denominations.

(e) Senior members of social and troop-welfare agencies.

(f) Select non-DOD civilian personnel.

(g) U.S. DOD military and civilian DVs holding a rank either equivalent to or higher than that of a general officer.

(2) Members of the DV's entourage and the DV's spouse are usually not authorized limited ILS. The spouse may be authorized by exception if he or she was specifically included on the invitation as an invitee for official business purposes.

12-3. PROCEDURES FOR OBTAINING TEMPORARY AUTHORIZATION CARDS

a. Sponsoring organizations of personnel in paragraph 12-2a will—

(1) Contact the CEA, OPM, HQ USAREUR-AF (mil 314-537-3946/3958/3957, civ 0049-(0)611-143-537-3946/3958/3957, or email: *usarmy.wiesbaden.usareur.list.opm-customs-ta-card@army.mil*) to request the TAC application for eligible personnel.

(2) Send the completed TAC application to the CEA, OPM, HQ USAREUR-AF (*usarmy.wiesbaden.usareur.list.opm-customs-ta-card@army.mil*), by email a minimum of 14 calendar days before the start date of the event.

(3) Ensure that the visitor meets DOD visitor guidelines in accordance with the instructions provided by the USAREUR-AF Liaison Office, U.S. Embassy Berlin (email: *usarmy.badenwur.usareur.mbx.usareur-lno-berlin-group@army.mil*), and, as applicable, provide the approved FVR.

b. Sponsoring organizations of personnel in paragraph 12-2b will—

(1) Contact the CEA, OPM, HQ USAREUR-AF (mil 314-537-3946/3958/3957, civ 0049-(0)611-143-537-3946/3958/3957, or email: *usarmy.wiesbaden.usareur.list.opm-customs-ta-card@army.mil*) to request the TAC application for eligible personnel.

(2) Clearly indicate in the request if rationed items are being requested.

(3) Send a copy of the official invitation letter and the completed TAC application by email to the CEA, OPM, HQ USAREUR-AF (*usarmy.wiesbaden.usareur.list.opm-customs-ta-card@army.mil*) a minimum of 14 calendar days before the start date of the event.

c. The CEA will—

(1) Verify the applicant's eligibility and generate the TAC.

(2) Either issue the TAC to the POC, or submit the TAC to the local USACA-E field office for sign-out to the responsible POC of the sponsoring organization.

12-4. AUTHORIZED SUPPORT

a. Official visitors of events sponsored by the U.S. Forces or NATO IMH Military Agencies, Organizations, and Units in Germany (para 12-2a) may be issued TACs. The possession of a TAC authorizes them to purchase the following:

(1) Nonrationed Goods. Eligible visitors are authorized to purchase tax- and duty-free goods for personal use and consumption at AAFES-Eur and Commissary facilities (as limited in para 12-1c) in Germany without payment of tax or duty to German authorities. The sales price per item may not exceed 25 euros or the U.S. dollar equivalent. Resale is not authorized.

(2) Ready-Made Foodstuffs. Eligible visitors are authorized to purchase ready-made foodstuffs for immediate consumption at U.S. Forces catering facilities in Germany.

b. DVs invited by U.S. Forces senior leaders in Germany (para 12-2b) may be issued TACs. The possession of a TAC authorizes them to purchase the following:

(1) Nonrationed Goods. Eligible visitors are authorized to purchase tax- and duty-free goods for personal use and consumption at AAFES-Eur and Commissary facilities (as limited in para 12-1c) in Germany without payment of tax or duty to German authorities. The sales price per item must not exceed 25 euros or the current U.S. dollar equivalent. Resale is not authorized.

(2) Rationed Goods. Eligible visitors are authorized to purchase rationed items (with the exception of POL) for personal use and consumption. The sponsoring U.S. Forces organization is responsible for issuing the ration card (AEA Form 600-702A) according to the authorized validity period and AE Regulation 600-702, table 1.

(3) Ready-Made Foodstuffs. Eligible visitors are authorized to purchase ready-made foodstuffs for immediate consumption at U.S. Forces catering facilities in Germany.

NOTE: Commissary access is granted only to foreign military personnel; civilians are excluded from access absent an ETP from the DOD in accordance with DODI 1330.17.

12-5. RESPONSIBILITIES AND SPECIAL INSTRUCTIONS

The sponsoring organization must—

a. Coordinate with its own administrative element (within the sponsoring agency or unit) for issue of appropriately limited ration cards in accordance with AE Regulation 600-702, if applicable and authorized by the CEA, OPM, HQ USAREUR-AF.

b. Return the TAC to the local USACA-E field office or to the CEA after the event.

c. Request an ETP from the CEA in accordance with chapter 14 of this publication for entitlements beyond the above-listed authorized support, or for missions exceeding 90 days (for example, for exercise planners).

CHAPTER 13
TEMPORARY AUTHORIZATION FOR APPOINTED CHILDCARE PROVIDERS

SECTION I
EXCEPTIONS TO POLICY FOR CHILDCARE PROVIDERS

13-1. GENERAL
Based on an ETP approved by the FMOF, the USAREUR-AF PM is authorized to grant limited ILS on a temporary basis to personnel who assist U.S. military and civilian component personnel assigned in Germany and NATO personnel assigned to an IMH in Germany with childcare. ILS authorizations for childcare providers (CCPs) who are HN residents or who are employed as care providers may be more restrictive due to applicable HN tax and customs restrictions. This chapter applies to the following ETP scenarios:

a. CCPs (sec II).

b. Personnel acting as in-loco-parentis (ILP) guardians (glossary) (sec III).

c. Shopping Agents (SAGs) (sec IV).

NOTE: This chapter does not apply to Family childcare (FCC) providers. For FCC providers on Army installations, see AR 608-10, chapter 6.

SECTION II
CHILDCARE PROVIDER

13-2. APPLICABILITY AND POLICY
NATO IMH and U.S. military or civilian component personnel assigned in Germany may require a CCP due to personal or duty reasons (for example, medical incapacitation, shift work, TDY). A CCP may be cost-free support provided by a Family member (for example, a relative, an extended Family member), by an au-pair (receiving pocket money), or by a hired domestic employee such as a nanny.

13-3. PROCEDURES

a. Respective personnel (para 13-2) will do the following:

(1) Apply for a CCP authorization at the local USACA-E field office.

(2) Present documents to prove their eligibility.

(3) Comply with HN requirements and present, as a minimum, the following information:

(a) Their full name, rank or grade, DOD ID card, unit or organization address, APO number, duty telephone number, date eligible for return from overseas (DEROS), quarters address, and (home) telephone number.

(b) A copy of the deployment or TDY orders. If not available, a written deployment verification, such as a memorandum endorsed by a unit or rear detachment commander outlining the circumstances and necessity, must be presented instead.

(c) A copy of the CCP's ID card or passport, and evidence of his or her nationality, place of residence, and address.

(d) Verification of the CCP's arrival in Germany (for example, immigration stamp).

(e) If applicable, copies of the CCP's German residence permit (*Aufenthaltsgenehmigung*) including the authorization to work (*Arbeitsgenehmigung*), and tax registration (*Steuernummer*) with German fiscal authorities (*Finanzamt*).

(f) If applicable, copies of the employment contract concluded by the sponsor and the CCP (for example, nanny or au-pair contract).

(g) If applicable, copies of the sponsor's tax registration (*Steuernummer*) with German fiscal authorities (*Finanzamt*).

(h) A valid foreign driver's license and, if necessary, the corresponding IDP for non-EU driver's licenses.

NOTE: If the CCP holds a non-EU driver's license and stays in Germany for more than 185 calendar days, documentation from the German licensing office (*Führerscheinstelle*) must be presented.

b. The CEA will review the request, determine the applicable support, and provide a memorandum of authorization to the requester.

13-4. AUTHORIZED SUPPORT

Support may vary based on individual situations and is contingent on the fulfillment of HN requirements. Support may also be more restrictive if the CCP is an ordinary resident in Germany. The following support may be granted to the CCP:

a. The use of U.S. Forces sales facilities when discharging a function for the child or the sponsor's Family, and the purchase of nonrationed items for the child or for the sponsor's Family.

b. The use of U.S. Forces sales and catering facilities in his or her own right for the purchase of food and beverages for immediate consumption.

c. The independent operation of the sponsor's USAREUR-AF-registered POV when discharging a function for the sponsor's child or Family. This does not include the use of the AAFES-Eur fuel ration card.

13-5. RESPONSIBILITIES

Respective personnel (para 13-2) will do the following:

a. Follow the guidelines in the issued memorandum of authorization (para 13-3b). Failure to comply with these conditions could result in U.S. Forces personnel and the CCP being subject to legal action and tax demands.

b. Acknowledge that the mere possession of a DOD ID card without SOFA status in Germany does not entitle the CCP to any customs or tax privileges in Germany, and inform the CCP accordingly.

c. Acknowledge that the CCP is not given NATO SOFA status and does not qualify for a U.S. Forces ID card, ration card, SOFA Identification Certificate, or USAREUR-AF Driver's Certificate as a result of performing those duties in Germany; and inform the CCP accordingly.

d. Ensure that all HN immigration, labor, and driver's license requirements are fulfilled and maintained.

e. Ensure that the CCP carries a copy of the authorization memorandum (para 13-3b).

f. Ensure that the CCP visits the nearest installation access office for registration purposes.

g. Not allow that the CCP uses the AAFES-Eur/ESSO Germany Fuel Ration Card for his or her USAREUR-AF-registered vehicles.

h. Not allow that the CCP (including a nanny or au-pair) uses the USAREUR-AF-registered vehicles for personal leisure purposes.

i. Report any relevant changes regarding the CCP (for example, employment with a German firm or the U.S. Forces, termination of contract, early departure) to the CEA immediately, as this may lead to the loss of privileges.

j. Ensure that, upon loss of privileges, the CCP is no longer in possession of any authorization documents (for example, installation pass) and no longer has access to a USAREUR-AF-registered POV.

SECTION III
IN-LOCO-PARENTIS GUARDIAN

13-6. APPLICABILITY AND POLICY
NATO IMH and U.S. military or civilian component personnel assigned in Germany and deployed or on TDY outside of Germany may be in need of an ILS authorization for an ILP guardian. The ILP guardian within the meaning of this regulation is the person appointed to act in place of the parent or parents. To receive an ILS authorization for an ILP guardian, both parents (or the single parent) must be deployed or on TDY outside of Germany. Each ILP guardian request is evaluated on a case-by-case basis with the German authorities.

13-7. PROCEDURES

a. Respective personnel (para 13-6) will do the following:

(1) Apply for an ILP authorization for the ILP guardian at the local USACA-E field office.

(2) Present documents to prove their eligibility.

(3) Comply with HN requirements and present, as a minimum, the following information:

(a) His or her full name, rank or grade, DOD ID card, unit or organization address, APO address, duty telephone number, DEROS, quarters address, and (home) telephone number.

(b) A copy of the deployment or TDY orders. If not available, a written deployment verification such as a memorandum endorsed by a unit or rear detachment commander outlining the circumstances and necessity for an ILP guardian must be presented instead.

(c) A copy of the ILP guardian's ID card or passport, and evidence of their nationality, place of residence, and address.

(d) Verification of the arrival date in Germany (immigration stamp) and visa documentation.

(e) A valid foreign driver's license and the corresponding international driver's license, or a driver's license valid in Germany.

NOTE: If the ILP holds a non-EU driver's license and stays in Germany for more than 185 calendar days, documentation from the German licensing office (*Führerscheinstelle*) must be presented.

b. The CEA will review the request, determine the applicable support, and provide a memorandum of authorization and a U.S. Forces ID card (AE Form 600-700A).

13-8. AUTHORIZED SUPPORT

Support may vary based on individual situations and is contingent on the fulfillment of HN requirements. Support may also be more restrictive if the ILP guardian is an ordinary resident or employee. The following support may be granted to the ILP guardian:

a. Use of U.S. Forces sales facilities in Germany to purchase merchandise for the Family's use and consumption.

b. Use of U.S. Forces sales facilities in Germany to purchase items (including rationed items) for personal use and consumption, without paying taxes to German customs. The single-item retail price cannot exceed the U.S. dollar equivalent of 25 euros.

c. Independent operation of the Family's USAREUR-AF-registered POV.

d. Use of the AAFES-Eur/ESSO Germany fuel ration card for the USAREUR-AF-registered POV.

e. Use of the APO system (solely for the receipt of the Family's mail).

f. Use of the banking system (only if in possession of a "Special Power of Attorney – Banking").

13-9. RESPONSIBILITIES

Respective personnel (para 13-6) will do the following:

a. Follow the guidelines in the issued memorandum of authorization (para 13-7b). Failure to comply with these conditions may result in the U.S. Forces personnel and the child's ILP guardian being subject to legal action and tax demands.

b. Acknowledge and inform the ILP guardian that the mere possession of a DOD ID card without SOFA status in Germany does not entitle the guardian to any customs or tax privileges in Germany.

c. Ensure that the guardian carries a copy of the memorandum of authorization (para13-7b).

d. Ensure that the ILP guardian visits (after receipt of AE Form 600-700A) the local ID card office for finalization of the ID card.

e. Ensure that the driver's license and insurance requirements are fulfilled and maintained.

f. Ensure that the ILP guardian is properly added to the USAREUR-AF vehicle registration certificate.

g. Ensure that the ILP guardian obtains the corresponding AAFES-Eur/ESSO Germany fuel ration card for the USAREUR-AF-registered vehicle (or vehicles).

h. Ensure that the ILP guardian visits the nearest installation access office for registration purposes.

i. Report any relevant changes regarding the ILP guardian (for example, employment with a German firm or the U.S. Forces, termination of contract, early departure) to the CEA immediately, as this may lead to the loss of privileges.

j. Ensure that, upon loss of the privileges, the guardian is no longer in possession of any authorization documents (for example, U.S. Forces ID card, ration card, or installation pass) and no longer has access to the Family's USAREUR-AF-registered POVs.

SECTION IV
SHOPPING AGENT

13-10. APPLICABILITY AND POLICY
NATO IMH and U.S. military or civilian component personnel stationed in Germany and deploying to, deployed to, or on leave or TDY outside of Germany may acquire a SAG authorization. This is usually free-of-charge support provided by the non-SOFA-status parent (for example, the divorced spouse, step parent) of the SOFA-status dependent child.

13-11. PROCEDURES

a. Respective personnel (para 13-10) will do the following:

(1) Apply for a SAG authorization at the local USACA-E field office.

(2) Present documents to prove their eligibility.

(3) Comply with HN requirements and present, as a minimum, the following information:

(a) His or her full name, rank or grade, SSN or DOD ID number, unit or organization address, APO number, duty telephone number, DEROS, quarters address, and (home) telephone number.

(b) A copy of the deployment or TDY orders. If not available, a written deployment verification, such as a memorandum endorsed by a unit or rear detachment commander outlining the circumstances and need for a SAG, must be presented instead.

(c) A copy of the SAG's ID card or passport, visa (if applicable); and evidence of their nationality, place of residence, and address.

b. The CEA will review the request, determine the applicable support, and provide a memorandum of authorization to the requester.

13-12. AUTHORIZED SUPPORT

Support may vary based on individual situations and is contingent on the fulfilment of HN requirements. The following support may be granted to the SAG:

a. Use of U.S. Forces sales facilities in Germany to purchase merchandise for the dependent's use and consumption.

b. Use of U.S. Forces sales and catering facilities to purchase food for immediate consumption.

NOTE: U.S. military and civilian component personnel assigned in Germany who are geographically significantly separated from the non-SOFA-status parent and the SOFA-status dependent may proceed with a SAG application and may receive a memorandum of authorization upon individual coordination with the German authorities.

13-13. RESPONSIBILITIES

Respective personnel (para 13-10) will do the following:

a. Follow the guidelines in the memorandum of authorization and those outlined below. Failure to comply with these conditions could result in U.S. Forces personnel and the SAG being subject to legal action and tax demands.

b. Acknowledge that the mere possession of the memorandum of authorization does not entitle the SAG to any customs or tax privileges in Germany and inform the SAG accordingly.

c. Ensure that the SAG carries a copy of the memorandum of authorization.

d. Ensure that the SAG visits the nearest installation access office for registration purposes.

e. Report any relevant changes regarding the SAG to the CEA immediately, as this may lead to the loss of privileges.

f. Ensure that, upon loss of the privileges, the SAG is no longer in possession of any authorization documents (for example, installation pass).

CHAPTER 14
EXCEPTIONS TO POLICY

14-1. GENERAL
The U.S. Forces cannot unilaterally approve exceptions to the customs or tax provisions of the NATO SOFA, the Supplementary Agreement, or the German Forces Customs Law. This requires coordination with, and approval by, the German customs authority. The processing time may take up to a few months. There is no guarantee that a request will be approved. Therefore, personnel should not make any decisions until German authorities have processed their request and a decision is on hand.

14-2. APPLICABILITY
This chapter applies to—

a. NATO IMH and U.S. Forces military and civilian component personnel (for example, in individual hardship situations).

b. U.S. Forces units and organizations (for example, for planning special events or donation drives).

14-3. PROCEDURES
Applicants will do the following:

a. Contact the CEA by email: *usarmy.wiesbaden.usareur.mbx.nato-sofa@army.mil*.

b. Explain in their request—

(1) The rationale for their request, and identify what specific reasons and circumstances are out of the ordinary.

(2) Why the request merits approval over established AE and AEA regulations.

(3) The effect if the request is not approved.

c. Provide personal details and any documents to justify and substantiate the request (for example, medical statements, orders; if applicable, copy of ID cards, passports, German residence permits).

14-4. RESPONSIBILITIES
U.S. Forces personnel and other applicants will not take action until approval has been granted. Otherwise, applicants may become subject to tax demand by HN authorities.

CHAPTER 15
CUSTOMS ENFORCEMENT, PENALTIES, AND PROCEDURES IN GERMANY

15-1. GENERAL

a. According to Articles XII and XIII of the NATO SOFA and Article 74 of the Supplementary Agreement to the NATO SOFA, the authorities of the military and the civilian component must take all appropriate measures to prevent abuses which may result from the granting of benefits and exemptions in the fields of customs and taxes. They must cooperate closely with the German authorities in the prevention of customs and tax offenses. To this end, the USAREUR-AF PM will maintain a team of qualified military police (MP) investigators within the mission operator to prevent and detect abuses of the tax and customs exemptions contained in the NATO SOFA and Supplementary Agreement. The USACA-E customs investigation teams will also include liaison personnel with German language skills to communicate with German authorities.

b. Customs investigation teams will be stationed at U.S. Army garrisons around Germany and cooperate closely with German customs authorities, the U.S. Army Criminal Investigation Command, the U.S. Air Force Office of Special Investigations, garrison MP, Air Force security police, and all other relevant law-enforcement agencies. The customs investigators will conduct enforcement actions to detect activities prohibited by this publication and violations with customs and tax implications contained in other publications as stated in paragraph 15-2 below. They will seize property and dispose of detained items in accordance with paragraph 15-4.

15-2. REGULATED ACTIVITIES AND PROHIBITED TRANSACTIONS

a. Personnel subject to this publication will comply with all publications as well as with HN rules and regulations outlined in the applicable section in appendix A.

b. Personnel subject to this publication will not—

(1) Use their importation or exportation privileges for profit or personal gain for themselves or others, or use their customs and tax entitlements to purchase tax-exempt merchandise for profit or to obtain personal gain for themselves or someone else, or to conduct a business (AE Reg 600-1, para 12).

(2) Make false oral or written customs declarations to conceal goods or information from customs officials.

(3) Import or export prohibited goods.

(4) Import or export restricted items in excess of authorized amounts without paying applicable customs duties and taxes.

(5) Import or export U.S. Government property without proper authority.

(6) Import goods or pets without complying with German health or public safety laws.

(7) Engage in or assist black-market activities. Black-market activities include the illegal transfer of rationed items or other tax-free goods with the intent of profit or personal gain.

(8) Transfer goods bought under duty- and tax-free conditions to other persons unless this publication or other applicable U.S. Forces regulations authorize the transfer.

(9) Cross borders without complying with applicable travel requirements. U.S. Forces personnel will follow DOD 4500.54-G and applicable service and theater command directives.

(10) Permit personnel who are not members of the U.S. Forces to independently operate a U.S. Forces-registered vehicle unless they have an approved AEA Form 550-175D or other written authorization signed by the CEA.

(11) Knowingly provide incorrect information when applying for AEA Form 550-175A, AEA Form 550-175B, AEA Form 550-175D, AEA Form 550-175K, AEA Form 550-175M, or AEA Form 550-175L.

(12) Use a U.S. Forces-registered vehicle and duty- and tax-free fuel to conduct commercial activities.

(13) Engage in home-based business (HBB) (AEA Reg 210-70) without proper registration approval through the garrison commander and the German finance office.

NOTE: Personnel and dependents planning on teleworking for non-U.S. Forces employers under self-employed status (freelance work including telework) are recommended to contact the legal assistance office.

(14) Fail to report any remuneration or revenue from a non-U.S. Forces employment or business activity (including property rental) to the HN as applicable by laws and regulations.

15-3. PUNISHMENTS FOR CIVILIAN AND MILITARY PERSONNEL

German authorities can prosecute both military and civilian violators, assess fines, and demand the reimbursement of any duties or taxes evaded. These punishments may run independently of the U.S. military judicial or civilian misconduct systems.

a. Military Personnel.

(1) Violations of the specific prohibitions and requirements of this regulation by Soldiers may result in adverse administrative action or punitive action under the provisions of the Uniform Code of Military Justice.

(2) Violators may be subject to administrative action, such as withdrawal of ration, exchange, and commissary privileges.

(3) Failure to specifically identify a provision as punitive will not relieve anyone from penalty or prosecution for a violation of a provision that is also a violation of German or U.S. law.

(4) Violations will be reported to HN authorities as applicable. Serious offenses could be handled by the German judicial system, and any jail sentences pronounced by a German court would be spent in a German prison.

b. Civilian Personnel.

(1) A violation of any of the requirements described in this regulation may constitute a criminal offense under HN law, punishable by administrative fine or imprisonment as authorized by law. Violations will be reported to the U.S. military and HN authorities.

(2) Violations of these provisions by civilian employees may result in the loss of ration, exchange, and commissary entitlements; in being barred from installations; and could even warrant removal from Federal service.

(3) HN authorities may prosecute violators, assess fines, and charge evaded customs duties and taxes. Serious offenses could be handled by the German judicial system, and any jail sentences pronounced by a German court would be spent in a German prison. Prosecution by the U.S. Department of Justice is also possible for the violation of certain provisions of this regulation.

c. Dependents of Military and Civilian Personnel.

(1) Violations of the provisions outlined in this regulation by dependents may result in the loss of ration, exchange, and commissary entitlements; in being barred from installations; and could even warrant the command-directed return of the dependents.

(2) Serious offenses could be handled by the German judicial system, and any jail sentences pronounced by a German court would be spent in a German prison. Prosecution by the U.S. Department of Justice is also possible for the violation of certain provisions of this regulation.

15-4. DETAINING, SEIZING, AND DISPOSING OF PROPERTY

a. The USACA-E or other appointees (in accordance with chap 8 of this publication) may—

(1) Temporarily detain property pending customs clearance for import to or export from Germany.

(2) Seize property when it is being brought into or is being taken out of Germany in violation of any German or U.S. law, regulation, or applicable international agreement.

b. When seizing or detaining property, the USACA-E or other designated customs inspecting authority will—

(1) Prepare a receipt for the property recipient or owner using DA Form 4137 or AF Form 52.

(2) Offer the recipient or owner a written explanation of his or her rights to protest against the seizure or detention.

c. USACA-E personnel may seize any property located on an accommodation provided to the U.S. Forces that may be used as evidence to investigate a suspected or alleged offense by any person not under their jurisdiction when any of the following applies:

(1) A person is caught or pursued in the act of committing a crime.

(2) USACA-E personnel are requested to do so by a German authority.

(3) The person is a member of the Forces or of the civilian component of another Sending State or a dependent of any such member and an authority of that state requests the seizure.

(4) Strong reasons exist to suspect that a person has committed or is attempting to commit a customs- or tax-related offense on or against an installation of a Sending State.

APPENDIX A
REFERENCES

SECTION I
PUBLICATIONS

Agreement Between the Parties to the North Atlantic Treaty Organization Regarding the Status of Their Forces (NATO SOFA)

Agreement to Supplement the Agreement Between the Parties to the North Atlantic Treaty Regarding the Status of their Forces With Respect to the Foreign Forces Stationed in the Federal Republic of Germany (Supplementary Agreement)

Agreement on the Implementation of the Customs and Taxation Provisions of the Supplementary Agreement to the NATO Status of Forces Agreement in Favor of a Force and a Civilian Component (Article 65 and Article 67 of the Supplementary Agreement)

Agreement on the Implementation of the Customs and Consumer Tax Provisions of the Supplementary Agreement to the NATO Status of Forces Agreement in Favor of Members of a Force, of a Civilian Component and Dependents (Article 3, para 6; and Article 66 of the Supplementary Agreement)

Schengen Agreement

Title 10, United States Code (Food and Drugs)

Public Law 91-513, Title 2 (Control and Enforcement), Section 100 (Controlled Substances Act)

Uniform Code of Military Justice

Arzneimittelgesetz (German Medicinal Products Act)
https://www.gesetze-im-internet.de/englisch_amg/englisch_amg.html

Aufenthaltsgesetz (German Residency Act)

Betäubungsmittelgesetz (German Narcotics Act)

Gesetz zur Ausführung der zoll- und steuerrechtlichen Bestimmungen des NATO-Truppenstatuts, des Zusatzabkommens zum NATO-Truppenstatut hinsichtlich der in der Bundesrepublik Deutschland stationierten ausländischen Streitkräfte und des Protokolls und der Abkommen betreffend die in der Bundesrepublik Deutschland errichteten internationalen militärischen Hauptquartiere (*Truppenzollgesetz*) (German Forces Customs Law)

Verordnung zur Durchführung des Truppenzollgesetzes (*Truppenzollordnung*) (German Forces Customs Ordinance)

Waffengesetz (German Weapons Act)
http://www.gesetze-im-internet.de/englisch_waffg/index.html

Internationaler Standard für Pflanzengesundheitliche Maßnahmen (ISPM) 15, Regelungen für Holzverpackungsmaterial im internationalen Handel – Einfuhrvorschriften (International Standard for Phytosanitary Measures 15, Regulation of Wood Packaging Material in International Trade – Importation)

DOD Directive 4500.54E, DOD Foreign Clearance Program (FCP)

DOD Instruction 1330.17, DOD Commissary Program

DOD 4525.6-M, Department Of Defense Postal Manual

Defense Transportation Regulation 4500.9-R, Part V, Department of Defense Customs and Border Clearance Policies and Procedures

AR 25-400-2, The Army Records Information Management System (ARIMS)

AR 195-5, Evidence Procedures

AR 215-1, Military Morale, Welfare, and Recreation Programs And Nonappropriated Fund Instrumentalities

AR 215-4, Nonappropriated Fund Contracting

AR 600-8-14/Air Force Instruction 36-3026_IP/Bureau of Naval Personnel Instruction 1750.10C, Identification Cards for Members of the Uniformed Services, Their Eligible Family Members, and Other Eligible Personnel

AR 608-10, Child Development Services

AR 690-700, Personnel Relations and Services (General)

Air Force Instruction 33-322, including Change 1, Records Management and Information Governance Program

USEUCOM Instruction 4002.01, Customs Border Clearance Agency Program

USEUCOM Instruction 8701.01A, Military Postal Services Within the USEUCOM AOR

USEUCOM Manual 4504.01/USNAVEUR Instruction 4600.7G/USAFE Instruction 24-201, Joint Transportation and Traffic Management

USEUCOM Directive 45-7, Country Regulations (To be replaced by ECI 5802.01 - Legal Affairs - Foreign Criminal Jurisdiction, Foreign Tax Relief Program and Country Regulations)

AE Regulation 10-5, Headquarters, United States Army Europe

AE Regulation 190-1/CNE-CNA-C6F Instruction 11240.6AB/USAFE-AFAFRICA Instruction 31-202, Driver and Vehicle Requirements and the Installation Traffic Code for the U.S. Forces in Germany

AE Regulation 190-6/CNE-CNA-C6F Instruction 5300.15U/USAFE-AFAFRICA Instruction 31-205, Registration and Control of Privately Owned Firearms and Other Weapons in Germany

AE Regulation 190-62, Army in Europe Military Police and Investigation Programs

AE Regulation 210-70, On-Post Commercial Solicitation

AE Regulation 215-6/USAFE Instruction 34-102, Individual Tax-Relief Program

AE Regulation 600-1, Regulated Activities in Europe

AEA Regulation 600-8-3, Army in Europe Postal Operations Manual

AE Regulation 600-17, Retail Sales of Motor Fuel to Individuals in Germany

AE Regulation 600-700, Identification Cards and Individual Logistic Support

AE Regulation 600-702/CNE-CNA-C6F Instruction 10110.1G/USAFE-AFAFRICA Instruction 34-101, Ration Policy

AE Regulation 612-1, Community Central In- and Outprocessing

AE Supplement 1 to AR 600-8-10, Leaves and Passes

German Customs travel restrictions
http://www.zoll.de/DE/Privatpersonen/Reisen/Rueckkehr-aus-einem-Nicht-EU-Staat/Einschraenkungen/Barmittel/barmittel_node.html

German Customs prohibitions and restrictions (*Verbote und Beschränkungen*)
http://www.zoll.de/DE/Fachthemen/Verbote-Beschraenkungen/verbote-beschraenkungen_node.html

German Customs prohibitions and restrictions when entering Germany (English language)
http://www.zoll.de/EN/Private-individuals/Travel/Entering-Germany/Restrictions/restrictions_node.html

USPS Publication 52, Hazardous, Restricted, and Perishable Mail, chapter 453, Controlled Substances and Drugs
https://pe.usps.com/text/pub52/pub52c4_019.htm

SECTION II
FORMS

NATO Form 302, Import/Export Customs Declaration

DA Form 2028, Recommended Changes to Publications and Blank Forms

DA Form 4137, Evidence/Property Custody Document

AF Form 52, Evidence Tag

AE Form 190-1A, U.S. Forces POV Registration/Title/POL Authorization / *Zulassungschein/Besitzurkunde für Privatkraftfahrzeuge*

AE Form 190-1AP, Request for Exception to Policy (Authority to Operate a Privately Owned Vehicle (POV))

AE Form 190-6D, Application for Issuance of a Permit Pursuant to the German Weapons Law (Preapproval Entry)/Application for a License to Acquire a Weapon/Reporting the Acquisition and Transfer of Ownership of a Weapon

AE Form 302, Import/Export Customs Declaration

AEA Form 550-175A, Import/Export Certificate and Purchase Permit/*Einfuhr-/Ausfuhrgenehmigung und Erwerbsgenehmigung*

AEA Form 550-175B, Permit to Transfer/*Veräußerungsgenehmigung*

AEA Form 550-175C, Request for Exception to Policy for Authorization to Operate a Privately Owned Vehicle/*Antrag auf Erteilung eines Berechtigungsausweises*

AEA Form 550-175D, Authorization to Operate a Privately Owned Vehicle/*Berechtigungsausweis*

AEA Form 550-175E, Customs Controls of Shipments Imported Via Military Post Offices

AEA Form 550-175F, Customs Inspections of Mail Shipped Thru the U.S. Forces Postal Services / *Zollkontrollen von Postsendungen, die über den Postdienst der US Streitkräfte versandt werden*

AEA Form 550-175G, Customs Clearance Certificate/*Erklärung für die Zollabfertigung*

AEA Form 550-175H, Customs Declaration for Pilots and Crew

AEA Form 550-175J, Customs Declaration for Members of the U.S. Forces

AEA Form 550-175K, U.S. Forces Status Verification / *Statusnachweis für versorgungsberechtigte Personen der US-Streitkräfte*

AEA Form 550-175L, U.S. Forces POL Authorization for Rental Vehicles or Privately Owned Vehicles Registered in Europe but not in Germany/*Genehmigung zum Kauf von Treibstoff für Mietwagen oder für außerhalb von Deutschland in Europa zugelassene Privatwagen*

AEA Form 550-175M, Request for Limited Individual Logistic Support (For Non-Sending State Foreign Liaison Personnel)

AEA Form 600-8-3C, Application for Box-R General Delivery Service

German Customs Form 0217, *Bescheinigung für die versorgungsberechtigte Person* (Pink Card, "*Zulassung*")

APPENDIX B
U.S. ARMY CUSTOMS AGENCY–EUROPE FIELD OFFICES

Table B-1 lists U.S. Army Customs Agency–Europe field offices and military customs customer-service offices. The USAREUR-AF Customs webpage can be found at *https://www.europeafrica.army.mil/customs/*.

Table B-1
U.S. Army Customs Agency–Europe Field Offices and Military Customs Customer-Service Offices

Office	Location	Telephone number
Ansbach	Barton Barracks building 5254, room 316	Civ: 0981-183-7842/7546 Mil: 468-7842/7546
Baumholder	Health Clinic Kaserne building 8747, room 7104	Civ: 0611-143-531-2945/2944 Mil: 531-2945/2944
Garmisch-Partenkirchen*	Military Police Station, Artillery Kaserne building 209	Civ: 08821-750-3648/3601 Mil: 440-3601/3648
Geilenkirchen*	470th Air Base Squadron/LGT Geilenkirchen NATO Air Base building 84, rooms 8 and 9	Civ: 02451-9151-4030/4031 Mil: 458-4030/4031
Grafenwöhr	Tower Barracks Training Area building 621, room 129	Civ: 09641-70-569-2896/2897 Mil: 569-2896/2897
Hohenfels	Training Area building 10, room 126	Civ: 09472-708-3376/2042 Mil: 522-3376/2042
Kaiserslautern	Kleber Kaserne building 3245, room 103	Civ: 0631-411-7383 Mil: 483-7383
Ramstein	Ramstein Airbase building 305, room 14	Civ: 06371-47-0100/3720 Mil: 480-0100/3720
Spangdahlem	Spangdahlem Air Base building 139, room 106	Civ: 06565-61-4500/7551 Mil: 452-4500/7551
Stuttgart	Panzer Kaserne building 2913, room 303	Civ: 09641-70-596-2657/2732 Mil: 596-2657/2732
Wiesbaden	Lucius D. Clay Kaserne building 1025, room 102	Civ: 0611-143-537-3934/3935 Mil: 537-3934/3935
***NOTE:** Military customs customer-service offices		

APPENDIX C
PROTEST AGAINST SEIZURE OR DETENTION OF PROPERTY

C-1. Property owners or recipients may protest the seizure or detention of their property through U.S. Forces authorities within 30 calendar days after being notified of the seizure or detention. The protest will be treated in either of the following ways:

a. If the property is still in the custody of U.S. Forces customs authorities, U.S. Forces customs authorities will evaluate the protest. If the protest is disallowed, the letter will be sent to German customs authorities for consideration. If the protest is allowed, the property will be released to the person who filed the protest.

b. If the property in question has been transferred to the custody of German customs authorities before the receipt of the letter of protest, the letter will be sent to the appropriate German customs authority for consideration and final action.

NOTE: Property owners or recipients may file a protest directly with German customs authorities.

C-2. Figure C-1 is the format for a letter of protest.

(Property owner or recipient)
(CMR XXX, Box XXX)
(APO AE XXXXX-XXXX)

(date)

HQ USAREUR-AF
(AEOP-PM)
Unit 29351
APO AE 09014-9351

RE: Protest Against Seizure or Detention of Property by U.S. Forces Customs Authorities

TO WHOM IT MAY CONCERN:

Personal property was (seized/detained) from my custody by (name of official) at (location), (time), on (date).

I hereby protest the (seizure/detention) of this property for the following reason: (reason for protest).

Sincerely,

(Typed or printed name)

Figure C-1. Format for a Letter of Protest Against the Seizure or Detention of Property

APPENDIX D
ASSIGNED RESPONSIBILITIES, POINTS OF CONTACT, AND RELATED PUBLICATIONS

The assigned responsibilities shown in table D-1 are in accordance with USEUCOM Directive (ED) 45-7. The glossary defines abbreviations used in the table.

Table D-1
Assigned Responsibilities, Points of Contact, and Related Publications

	Assigned Responsibilities (ED 45-7)	OPR - POC Customs Border Clearance Agency Programs (ECI 4002.01)	OPR - POC Official Consignments	OPR - POC Administrative Customs Arrangements	Customs-related Regulations (for example, agreements, arrangements)
Belgium	CG, USAREUR-AF	CEA	USEUCOM J4 MCT Rotterdam	CDR, USAG Benelux (NSSG) APO AE 09708	TBD [6]
Bulgaria			USEUCOM J4	TBD 1	
Germany				USAREUR-AF PM (as the USAREUR-AF CG's Customs Executive Agent in accordance with AE Reg 10-5)	AEA Reg 550-175
Hungary			USEUCOM J4/ NATO	TBD 1	TBD [6]
Kosovo			USEUCOM J4		
Netherlands			USEUCOM J4/ MCT Rotterdam	CDR, USAG Benelux (NSSG) APO AE 09708	AE Reg 550-35
Poland				TBD [1]	TBD [6]
Romania					
Greenland	COMUSAFE		USEUCOM J4	TBD [2]	
Luxembourg					
Norway					AE Reg 550-34
Turkey					AE Reg 550-36
UK					AE Reg 550-33
Greece	CNE-CNA-C6F			TBD [3]	TBD [3, 6]
Italy				TBD [4]	AE Reg 550-32
Spain				TBD [5]	TBD [5, 6]

[1] For information, contact the Office of the Judge Advocate (OJA), HQ USAREUR-AF (*https://www.europeafrica.army.mil/Staff/*).
[2] For information, contact the USAFE/AFAFRICA JA via OJA.
[3] For information, contact *https://www.cnic.navy.mil/regions/cnreurafcent/installations/nsa_souda_bay.html* or *https://www.jag.navy.mil/legal_services/rlso/rlso_eurafswa.htm*.
[4] For information, contact *https://www.jag.navy.mil/legal_services/rlso/rlso_eurafswa.htm*; or the USAG Italy Customs Office by email: *usarmy.usag-italy.id-europe.mbx.vicenza-customs@army.mil*.
[5] For information, contact *https://www.cnic.navy.mil/regions/cnreurafcent/installations/ns_rota.html;* or *https://www.cnic.navy.mil/regions/cnreurafcent/installations/ns_rota/about/installation_guide/phone_directory.html*.
[6] For information regarding country agreements, arrangements, or ongoing coordination, contact the Office of the Deputy Chief of Staff, G8, HQ USAREUR-AF (*https://intranet.eur.army.mil/hq/g8/IAD/SitePages/Home.aspx*), or contact the respective component JA (*https://www.europeafrica.army.mil/customs/*).

APPENDIX E
HOST-NATION BORDER CONTROL AND U.S. ARMY CUSTOMS AGENCY–EUROPE CUSTOMS CLEARANCE IN GERMANY

Table E-1 shows requirements for passenger and baggage processing at U.S. Forces airfields or air bases in Germany where the German *Bundespolizei* (BPOL) is not colocated. The glossary defines abbreviations used in the table.

Table E-1
Passenger and Baggage Processing Requirements
(For passenger and baggage processing at U.S. Forces airfields or air bases in Germany where BPOL is not colocated)

	• U.S. Forces members • U.S. civilian component personnel and their dependents with NATO SOFA status (PCS or TDY orders) in Germany		**• Non-U.S. Sending States Forces (SSF) • Civilian component personnel and their dependents (BE, CA, FR, NE, UK) regardless of their status • Non-SOFA-status personnel**	
	Border Control/ ID Check (Art 5, para 2c, NS SA)	Customs Clearance in accordance with Administrative Agreement (pursuant to Art 3, 65, 66, and 74 NS SA)	Border Control/ ID Check (Art 5, para 2c, NS SA)	Customs Clearance in accordance with Administrative Agreement (pursuant to Art 3, 65, 66, and 74 NS SA)
EU/Schengen: Austria, Belgium, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hungary, Italy, Latvia, Liechtenstein, Lithuania, Luxemburg, Malta, Netherlands, Poland, Portugal, Slovakia, Slovenia, Spain, Sweden	USACA-E[1]	USACA-E will independently conduct customs clearance in accordance with chapter 8 of this regulation.	No immigration clearance by BPOL required. USACA-E self-enforcement and optional ID control.	USACA-E will coordinate with HN authorities (Customs) and conduct customs clearance in accordance with chapter 8 of this regulation.
Non-EU/Schengen: Iceland, Norway, Switzerland	USACA-E[1]	USACA-E will independently conduct customs clearance in accordance with chapter 8 of this regulation.	No immigration clearance by BPOL required. USACA-E self-enforcement and optional ID control.	USACA-E will coordinate with HN authorities (Customs) and conduct customs clearance in accordance with chapter 8 of this regulation.
EU/non-Schengen: Bulgaria, Croatia, Cyprus, Ireland, Romania	USACA-E[1]	USACA-E will independently conduct customs clearance in accordance with chapter 8 of this regulation.	BPOL	USACA-E will coordinate with HN authorities (Customs/BPOL[2]) and conduct customs clearance in accordance with chapter 8 of this regulation.
Non-EU/Non-Schengen: For example, Africa, Kosovo, Turkey, Ukraine, United Kingdom, United States	BPOL or USACA-E (in accordance with local BPOL arrangements)	USACA-E will independently conduct customs clearance in accordance with chapter 8 of this regulation.	BPOL	USACA-E will coordinate with HN authorities (Customs/BPOL2) and conduct customs clearance in accordance with chapter 8 of this regulation.

[1] BPOL is limited to only do coordinated spot checks.
[2] Flights from outside the Schengen Area require a corresponding request for authorized border crossing with pertinent flight and passenger information. Time limits apply based on local BPOL guidance. USACA-E will assist in submitting the information to the appropriate BPOL directorate (para 8-1b).

APPENDIX F
AUTHORIZED USE OF FAMILY AND MORALE, WELFARE, AND RECREATION "FOR-FEE" SERVICES BY SELECT DEFENSE BENEFICIARIES ON A SPACE-AVAILABLE BASIS

Table F-1 lists Family and morale, welfare, and recreation (FMWR) "for-fee" services and the beneficiaries (retirees, widows and widowers, unaccompanied dependents, Veteran Health Identification Card (VHIC) holders) who are authorized to use those services on a space-available basis.

NOTE: In accordance with the Federal Ministry of Finance (FMOF) exception-to-policy ruling, dated 27 August 2020, retiree and VHIC holder participation cannot exceed 5 percent of the annual FMWR sales of each individual FMWR facility. Therefore, access can only be granted on a space-available basis in order for FMWR to fulfill the FMOF approval conditions.

Table F-1
Beneficiaries Authorized to Use Family and Morale, Welfare, and Recreation "For-fee" Services

MWR Services and Facilities	Retirees	VHIC Holders
Army Community Service Programs	Yes (Exception: home-based businesses)	No - limited to category C
Armed Forces Recreation Centers (Edelweiss Lodge and Resort)	Yes	Yes
Army Lodging – Unofficial Overnight Stays	Yes	Yes
CYS Programs	Yes	No - limited to category C
Value-added Tax	No	No
Social and Dining Programs		
Restaurants	Yes	Yes
Catering	Yes	Yes
Automotive Skills	Yes	Limited to category C
Skills Center and Service	Yes	No
Retail Sales (with Pink Card)	Yes	Yes
Vehicle Donation and Disposal	Yes	Yes
Conference Rooms and Meeting Spaces	Yes	Yes
Used Vehicle Sales (buying, selling, and submitting a bid form)	Yes (purchases must be customs-cleared in accordance with paragraph 15-17 Forces Customs Ordinance; or Section 16, Forces Customs Law (FCL).	Yes
Use of Junk Yard or Buying Parts (with Pink Card)	Yes	Yes

Table F-1
Beneficiaries Authorized to Use Family and Morale, Welfare, and Recreation "For-fee" Services—Continued

MWR Services and Facilities	Retirees	VHIC Holders
Sports and Fitness Programs		Limited to category C
Pro Shop and Retail Sales (with Pink Card)	Yes	Yes
Sports and Fitness Center; Spa, Massage	Yes	No
Golf Course - Green Fees (annual or daily)	Yes	Yes
Golf Course (Pro Shop with Pink Card)	Yes	Yes
Pool	Yes	No
Library	Yes	No - limited to category C
Warrior Adventure Quest	Yes	No
Outdoor Recreation	Yes	Limited to category C
Trips and Tours	Yes	Yes
Outdoor Recreation Equipment Rental	Yes	Yes
Retail Sales (with Pink Card)	Yes	Yes
Paintball	Yes	Yes
Fishing Course	No (Restricted by HN laws. Courses are accepted by the HN under bilateral agreements but only for members of the force, civilian component and their family members.)	
Hunting Course	No (Restricted by HN laws. Courses are accepted by the HN under bilateral agreements but only for members of the force, civilian component and their family members.)	
Sport-shooting Course	No (Restricted by HN laws. Courses are accepted by the HN under bilateral agreements but only for members of the force, civilian component and their family members.)	
Range and Fire Arms Rental	Yes	Yes
Travel and Lodging Programs (not AFRC)	Yes	Yes
Entertainment Center		
Bowling	Yes	Yes
Conference and Meeting Rooms	Yes	Yes
Slot Machines	No (Restricted by HN gambling laws, for example *Spielverordnung* and *Spielhallengesetze*)	

Table F-1
Beneficiaries Authorized to Use Family and Morale, Welfare, and Recreation "For-fee" Services—Continued

MWR Services and Facilities	Retirees	VHIC Holders
BINGO with stakes (pay to play)	No (Restricted by HN gambling laws (for example *Spielverordnung* and *Spielhallengesetze*)	
BINGO without stakes (no-fee play); noncash prizes (*Sachpreise*) only; must be customs-cleared in accordance with Section 16, FCL.	Yes (Option 1: Exclude U.S.-specification POVs; Option 2: U.S.-specification POVs may have to be converted in order to be properly registered in the German VR system; additional fees will apply.)	
Raffles, Scrambles, and similar games with stakes subject to HN approval; noncash prizes (*Sachpreise*) must be customs-cleared in accordance with Section 16, FCL.	Yes - subject to HN approval Option 1: Exclude U.S.-spec POVs Option 2: U.S.-spec POVs may have to be converted in order to be properly registered in the German VR system; additional fees will apply (Allowing retirees to participate without official approval is a criminal offense. The approval authority depends on the type of event and may rest with the city, municipality, or county, through the *Regierungspräsidium* or State ministry. In order to be approvable, amongst other criteria, the financial revenue from the stakes must be for nonprofit purposes.)	
Raffles, Scrambles, and other games without stakes; noncash prizes (*Sachpreise*) only, must be customs cleared in accordance with Section 16, FCL.	Yes Option 1: Exclude U.S.-spec POVs Option 2: U.S.-spec POVs may have to be converted in order to be properly registered in the German VR system; additional fees will apply	
Theater	Yes	Yes
Arts and Crafts	Yes	Limited to category C
Retail Sales with Pink Card	Yes	Yes
Lessons, Courses, including course material	Yes	Yes (for fee services)

GLOSSARY

SECTION I
ABBREVIATIONS

AAA	American Automobile Association (*https://www.aaa.com/vacation/idpf.html*)
AAFES-Eur	Army and Air Force Exchange Service Europe and Southwest Asia
AATA	American Automobile Touring Alliance (*http://aataidp.com/*)
AE	Army in Europe
AEA	Army in Europe and Africa
CBCA	customs and border clearance agent
AEPUBS	Army in Europe Library & Publishing System
AF	Air Force
AFRC	Armed Forces Recreation Center
APO	Army Post Office
ARMP	Army Recreation Machine Program
CBCA	customs and border clearance agent
CCO	customs clearance officer
BX	base exchange
CCP	childcare provider
CEA	Customs Executive Agency, Office of the Provost Marshal, HQ USAREUR-AF
CMD	command
CNE-CNA-C6F	Commander, U.S. Naval Forces Europe/Commander, U.S. Naval Forces Africa/Commander, U.S. Sixth Fleet
DeCA	Defense Commissary Agency
DEROS	date eligible for return from overseas
DOD	Department of Defense
DTR	Defense Transportation Regulation
DA	Department of the Army
DV	distinguished visitor
ECI	United States European Command instruction
ETP	exception to policy
EU	European Union
FCC	Family childcare
FCL	Forces Customs Law (*Truppenzollgesetz*)
FCO	Forces Customs Ordinance (*Truppenzollverordnung*)
FLO	foreign liaison officer
FMOF	Federal Ministry of Finance (*Bundesministerium der Finanzen*)
FVR	foreign visitor request
FMWR	Family and morale, welfare, and recreation
g	gram
GSA	General Services Administration
HBB	home-based business
HN	host nation
HQ	headquarters
ID	identification
IDP	international driver's permit
IFMS	interagency fleet management system
ILS	individual logistic support

ILP	in loco parentis
IMCOM-Europe	United States Army Installation Management Command Europe
IMH	international military headquarters
J-4	Director for Logistics and Security Assistance, United States European Command
L	liter
LN	local national
MARFOREUR/AF	United States Marine Corps Forces Europe and Africa
MOA	memorandum of agreement
MPO	military post office
MPS	Military Postal Service
NAFI	nonappropriated fund instrumentality
NATO	North Atlantic Treaty Organization
NAVEUR-NAVAF	United States Naval Forces Europe/Naval Forces Africa
NTV	nontactical vehicle
OPM	Office of the Provost Marshal, Headquarters, United States Army Europe and Africa
oz	ounce
PCS	permanent change of station
PDS	permanent duty station
PM	Provost Marshal, United States Army Europe and Africa
POF	privately owned firearm
POV	privately owned vehicle
PX	post exchange
qt	quart
R&R	rest and recuperation
SA	shopping assistant
SAG	shopping agent
SETAF-AF	United States Army Southern European Task Force, Africa
SOCEUR	Special Operations Command Europe
SOCAFRICA	Special Operations Command Africa
SOFA	Status of Forces Agreement
SOP	standing operating procedure
SSN	Social Security number
TAC	temporary authorization card
TDY	temporary duty
TESA	technical expert status accreditation
U.S.	United States
USACA-E	United States Army Customs Agency–Europe
USAFE/AFAFRICA	United States Air Forces in Europe/Air Forces Africa
USAREUR-AF	United States Army Europe and Africa
USEUCOM	United States European Command
VA	Veterans Administration
VEBEG	German Federal Disposal Sales and Marketing Agency
VHIC	veteran health identification card

SECTION II
TERMS

20/20/20 spouses
Individuals who were married to a uniformed Servicemember for at least 20 years, and the member had at least 20 years of service creditable in determining eligibility to retired pay, and the marriage overlapped by 20 or more years

90-day grace period
The period for which Family members are eligible for continued individual logistic support (ILS) after the sponsor's death or departure from Germany. This period is defined in Article 2(b) of the Supplementary Agreement to the NATO Status of Forces Agreement (SOFA) and reads as follows: "Should a member of a force or of a civilian component die or leave the Federal territory on transfer, the dependents of such member, including close relatives […], shall be considered to be, and treated as, dependents […] for a period of ninety days after such death or transfer if such dependents are present in the Federal territory."
In case of a departure, this period starts on the date the sponsoring Soldier is required to report to the new permanent duty station (PDS). In case of TDY-en-route orders, and in case no reporting date for the next PDS is given, the 90-day grace period starts on the end date of the TDY (AE Reg 612-1).

NOTE: An extension to this 90-day grace period cannot "per se" be authorized. The continuation of SOFA status and ILS with all related customs and tax privileges for Family members in Germany past the 90-day grace period requires German Government approval.

dependent
A person who is a lawful spouse, an unmarried child (including adopted child or stepchild), a ward, or a parent (including adoptive parent, stepparent, parent-in-law, and adoptive parent-in-law); and meets the dependency specification in an applicable Service directive (for example, AR 600-8-14)

gray-area retiree
A retired Reservist who is eligible for retired pay and who is under 60 years old

individual logistic support
Support privileges offered to various categories of military or civilian personnel in accordance with the NATO Status of Forces Agreement and Supplementary Agreement in Germany (AE Reg 600-700)

in-loco-parentis guardian
A person acting "in the place of a parent." That person may receive limited customs and tax privileges (for example, purchasing items in U.S. Forces sales facilities) in Germany when neither one of the parents is present in Germany

international driver's permit
The translation of a domestic driver's license (issued by an authorized automobile club – in the United States, that is, the American Automobile Association or the American Automobile Touring Alliance – or respective road or traffic authority) that allows the holder to drive a private motor vehicle in any country or jurisdiction that recognizes the document

noncommercial quantities
Quantities not exceeding the amount needed for personal use and consumption and not for resale

rental agency
An agency that has a business or trade license for renting vehicles. All rental vehicles within the agency's fleet must be identified or registered and insured as rental vehicles.

rental contract
A contract that is concluded with an official, licensed vehicle rental agency

surplus goods
Tax-free materials and equipment of the U.S. Forces that are no longer needed

third country (*Drittland*)
Any country outside of the integrated EU customs area (legal term)

***Truppenzollgesetz* (Forces Customs Law)**
The law on the implementation of the customs and taxation provisions of the Agreement Between the Parties to the North Atlantic Treaty Organization Regarding the Status of Their Forces (NATO SOFA), dated 19 June 1951, and of the Supplementary Agreement to the NATO SOFA With Respect to the Foreign Forces Stationed in the Federal Republic of Germany, dated 3 August 1959

***Truppenzollverordnung* (Forces Customs Ordinance)**
The ordinance implementing the Forces Customs Law

unaccompanied dependents
Dependents who reside in Germany while their sponsor is assigned to a duty station outside of Germany, or whose sponsor has died